

**OFFICE BUILDING
LEASE AGREEMENT**



**Las Colinas Business Park
6341 Campus Circle
Irving, Texas**

LANDLORD:

**National Prime Commercial, LLC
a Texas limited liability Company**

TENANT:

TDIndustries Inc.

LEASE DATE:

OCTOBER 1, 2025

OFFICE BUILDING LEASE

Office Building: CAMPUS CIRCLE OFFICE BUILDING

Landlord: NATIONAL PRIME COMMECRIAL LLC, A TEXAS LIMITED LIBILITY COMPANY

Tenant: TDIndustries Inc.

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Exhibit A	Legal Description	Exhibit G	Guaranty
Exhibit B	Not used	Exhibit H	Confidentiality Clause
Exhibit C	Not used	Exhibit I	Minimum Guaranteed Rental Schedule
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OFFICE BUILDING LEASE

ARTICLE 1

DEFINITIONS AND CERTAIN BASIC PROVISIONS

1.1 The following list sets out certain defined terms and certain financial and other information pertaining to this Lease:

- (a) "Landlord": NATIONAL PRIME COMMECRIAL LLC, A TEXAS LIMITED LIABILITY COMPANY
- (b) Landlord's address: P. O. BOX 163 COLLEYVILLE, TEXAS 76034
- (c) "Tenant": TDIndustries Inc.
- (d) Tenant's address: 13850 Diplomat Drive, Dallas, Texas 75234
- (e) Tenant's trade name: TDIndustries Inc.
- (f) Tenant's Guarantor EXHIBIT "G"
- (g) "Agent": _____
- (h) "Cooperating Agent": Aaron Rice

(i) "Office Building": Property located in the City of Irving, Dallas County, Texas, which property is described on Exhibit "A" attached to this Lease, exclusive of outparcels or other areas which are separately owned or maintained, together with such additions, deletions, and other changes as Landlord may from time to time designate as included within or excluded from the Office Building.

(j) "Demised Premises": An office unit containing approximately 5,311 square feet in area (measured by calculating lengths and widths to the exterior of outside walls and to the center of interior walls and common area), in the Office Building known as CAMPUS CIRCLE Office Building and being shown on Exhibit "B" attached to this Lease with address of 6341 Campus Circle Drive East Shite 150, Irving Texas 75063 With regard to Exhibit "B", the parties agree that the exhibit is attached solely for the purpose of locating the Office Building and the Demised Premises within the Office Building and that no representation, warranty, or covenant is to be implied by any other information shown on the exhibit (i.e., any information as to buildings, tenants or prospective tenants, etc. is subject to change at any time).

(k) "Commencement Date": The earlier of (i) the date upon which Tenant opens for business at the Demised Premises, or (ii) whichever of the following alternatives may be appropriate (place an "X" or other mark designating a choice in the appropriate box):

- ☐ On the day the Demised Premises are deemed "ready for occupancy" (as defined in Exhibit "D" attached to this Lease), it being agreed that the Demised Premises are "ready for occupancy" as of the date of this Lease.
- ☒ On October 1, 2025

(l) "Lease Term": Commencing on the Commencement Date and continuing for Twelve (12) months after the Commencement Date; provided that if the Commencement Date is a date other than the first day of a calendar month, the Lease Term shall be extended to include the remainder of the calendar month in which the Commencement Date occurs.

(m) "Minimum Guaranteed Rental":

Months 01 through 12, inclusive \$6,200.00 per month

(n) "Percentage Rental Rate": None.

(o) Escrow Payment for utilities Combined, a minimum of \$1,500.00 per month, payable in advance.

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(p) "Prepaid Rental": \$7,600.00, being an estimate of the Minimum Guaranteed Rental, Common Area Maintenance Charge and Tenant's obligations utilities and trash charges for the first month of the Lease Term, such prepaid rental being due and payable upon execution of this Lease.

(q) "Security Deposit": \$7,600.00, such Security Deposit being due and payable upon execution of this Lease.

(r) "Permitted Use": The Demised Premises shall be used for normal office operation, and for no other purpose, subject to, and the Demised Premises may not be used at any time in violation of any restrictions by Law. Tenant acknowledges that the above specification of a "permitted use" means only that Landlord has no objection to the specified use and does not include any representation or warranty by Landlord as to whether or not such specified use complies with applicable laws and/or requires special governmental permits. Notwithstanding the foregoing, other than (i) any tenants or occupants who have entered into leases or who otherwise have the right to occupy the Office Building prior to the date of this Lease, and (ii) any person or entity having the right to occupy any portion of the Office Building not owned or controlled by Landlord; and their respective successors and assigns, to which parties the following use limitation does not apply, and only so long as (a) Tenant is not in default under this Lease beyond applicable notice and cure periods, (b) Tenant is open for business to the public in the Office Building for the Permitted Use in compliance with this Lease, and (c) Tenant is paying full rent and other charges. Notwithstanding any of the foregoing to the contrary, Landlord shall not be obligated to maintain or enforce the restrictions set forth in the first sentence of this paragraph or any similar provision of the Lease to the extent same would be in violation of any antitrust law or other applicable law. In addition, Tenant shall indemnify and hold harmless Landlord of and for any claim, damage or liability including, without limitation, the payment of all legal costs and related expenses, incurred in connection with or relating to any such antitrust or other claim or counterclaim, which obligations shall survive the expiration or earlier termination of this Lease.

1.2 The following chart is provided as an estimate of Tenant's initial monthly payment broken down into its components. This chart, however, does not supersede the specific provisions contained elsewhere in this Lease:

Initial Minimum Guaranteed Rental (Section 1.1(m))	\$6,200.00
Initial Common Area Maintenance and Utilities Charge (Sections 1.1(o), 7.4 and Article 14)	\$1,500.00*
Initial Escrow Payment for Base Taxes and Other Real Estate Charges** (Article 6)	
Initial Escrow Payment for Base Insurance** (Article 6)	
Total Initial Monthly Payment	\$7,700.00

* Estimated common Area charges are capped at \$1,500.00, excluding the Uncontrollable Expenses such as utilities, trash removal and roof repair.

** No Initial Escrow Payment for Tax and Insurance for first year. But for any year after or renewal option Initial Escrow Payment for Taxes and Insurance will be added to monthly Minimum Guaranteed Rental.

ARTICLE 2

GRANTING CLAUSE

2.1 In consideration of the obligation of Tenant to pay rent as herein provided and in consideration of the other terms, covenants, and conditions hereof, Landlord leases to Tenant, and Tenant hereby takes from Landlord, the Demised Premises upon the terms and conditions set forth in this Lease.

ARTICLE 3

DELIVERY OF DEMISED PREMISES

3.1 Except to the extent modified by Landlord's express assumption of construction obligations, if any, in an exhibit attached to this Lease, the Demised Premises is being leased "AS IS," with Tenant accepting all defects, if any; and Landlord makes no warranty of any kind, express or implied, with respect to the Demised Premises (without limitation, Landlord makes no warranty as to the habitability, fitness or suitability of the Demised Premises for a particular purpose nor as to the absence of any toxic or otherwise hazardous substances). This Section 3.1 is subject to any contrary requirements

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under applicable law; however, in this regard Tenant acknowledges that it has been given the opportunity to inspect the Demised Premises and to have qualified experts inspect the Demised Premises prior to the execution of this Lease.

ARTICLE 4

RENT

4.1 Minimum Guaranteed Rental shall accrue from the Commencement Date, all other Rent shall accrue from and after the date of execution hereof, and shall be payable to Landlord, at Landlord's address. As used in this Lease, the terms "rental", "rent" or "Rent" shall mean Minimum Guaranteed Rental, Common Area Maintenance Charges, and/or any other charges to Tenant or payments required to be made by Tenant pursuant to this Lease.

4.2 Tenant shall pay to Landlord Minimum Guaranteed Rental in monthly installments in the amounts specified in Section 1.1(m) of this Lease. The first such monthly installment shall be due and payable on or before the Commencement Date, and subsequent installments shall be due and payable on or before the first day of each succeeding calendar month during the Lease Term; provided that if the Commencement Date is a date other than the first day of a calendar month, there shall be due and payable on or before such date as Minimum Guaranteed Rental for the balance of such calendar month a sum equal to that proportion of the rent specified for the first full calendar month as herein provided, which the number of days from the Commencement Date to the end of the calendar month during which the Commencement Date shall fall bears to the total number of days in such month.

4.3 Intentionally omitted.

4.4 Intentionally omitted.

4.5 Intentionally omitted.

4.6 It is understood that the Rent is payable on or before the first day of each calendar month (in accordance with Section 4.1 above) without offset or deduction of any nature. Acceptable forms of rent payment include check and ACH. In the event any rental is not received within 5 days after its due date for any reason whatsoever, or if any rental payment is by check which is returned for insufficient funds, then in addition to the past due amount Tenant shall pay to Landlord one of the following (the choice to be at the sole option of Landlord unless one of the choices is improper under applicable law, in which event the other alternative will automatically be deemed to have been selected): (a) an overdue rent charge in an amount equal to ten percent (10%) of the rental then due, in order to compensate Landlord for its administrative and other overhead expenses; or (b) interest on the rental then due at the maximum contractual rate which could legally be charged in the event of a loan of such rental to Tenant (but in no event to exceed 2% per month). Such interest to accrue continuously on any unpaid balance due to Landlord by Tenant during the period commencing with the rental due date and terminating with the date on which Tenant makes full payment of all amounts owing to Landlord at the time of said payment. Any such overdue rent charge or interest payment shall be payable as additional rental under this Lease and shall be payable immediately on demand.

4.7 If Tenant fails in two consecutive months to make rental payments within five days after due, Landlord, in order to reduce its administrative costs, may require, by giving written notice to Tenant (and in addition to any overdue rent charge or interest accruing pursuant to Section 4.6 above, as well as any other rights and remedies accruing pursuant to Article 12 or Article 13 below, or any other provision of this Lease or at law), that Rent is to be paid quarterly in advance instead of monthly and that all future rental payments are to be made on or before the due date by cash, cashier's check, or money order and that the delivery of Tenant's personal or corporate check will no longer constitute a payment of rental as provided in this Lease. Any acceptance of a monthly rental payment or of a personal or corporate check thereafter by Landlord shall not be construed as a subsequent waiver of said rights.

4.8 Notwithstanding anything contained in this Lease to the contrary, all amounts payable by Tenant to or on behalf of Landlord under this Lease, whether or not expressly denominated as rent, shall constitute rent for the purposes of Section 502(b)(6) (or any comparable successor provision) of the United States Bankruptcy Code (Title 11 of the United States Code) and for all other purposes.

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ARTICLE 5

SALES REPORTS, RECORDS AND FINANCIAL STATEMENTS

ARTICLE 6

TENANT'S RESPONSIBILITY FOR TAXES, OTHER REAL ESTATE CHARGES AND INSURANCE EXPENSES

6.1 Tenant shall be liable for all taxes levied against personal property and trade fixtures placed by Tenant in the Demised Premises. If any such taxes are levied against Landlord or Landlord's property and if Landlord elects to pay the same or if the assessed value of Landlord's property is increased by inclusion of personal property and trade fixtures placed by Tenant in the Demised Premises and Landlord elects to pay the taxes based on such increase, Tenant shall pay to Landlord upon demand that part of such taxes for which Tenant is primarily liable hereunder.

6.2 Tenant shall also be liable for "Tenant's Proportionate Share" (as defined below) of increases in Basic Tax Cost of all "real estate charges" (as defined below), and increases in Basic Insurance Cost of "insurance expenses" (as defined below) for the first year of the lease, related to the Office Building or Landlord's ownership of Office Building for the first year of the lease, and shall be reliable for prorated of total cost of Real state Tax and Insurance expenses for any renewal option thereafter. All payment for which Tenant is liable pursuant to this Article (6) to be considered for all proposes to be additional Rental under this lease. Tenant's obligations under this Section 6.2 shall be prorated during any partial year (*i.e.*, the first year and the last year of the Lease Term). "Tenant's Proportionate Share" shall be a fraction the numerator of which is the total floor area (all of which is deemed "leasable") in the Demised Premises and the denominator of which is the total leasable floor area of all buildings in the Office Building at the time when the respective charge was incurred. Tenant shall make such payments to Landlord on demand in full or at intervals not more frequent than monthly at Landlord's option, Tenant shall pay Tenant's Proportionate Share of all real estate charges to Landlord as additional rent, together with Minimum Guaranteed Rental as payable under this Lease. "Basic real estate charges" shall include ad valorem taxes, general and special assessments, any tax or excise on rents, any tax or charge for governmental services (such as street maintenance or fire protection), any tax or charges implemented after the date of the lease and reasonably determine by Landlord to have been assessed in lieu of the whole or part of any of such above described "real estate charges" any fees paid by Landlord to consultants, attorneys and other professionals who monitor, negotiate and/or contest any or all above described real estate charges, and any tax or charge related to the Demise Premises which replaces any of such above-described "real estate charges".

6.3 Intentionally omitted.

6.4 Prior to January 1 of each calendar year during the term of the Lease, or as soon thereafter as reasonably practical, Landlord shall provide an estimate of Tenant's share of increases in Basic Tax and Insurance Costs for the forthcoming calendar year, (calculated separately for each Basic Cost), equal to the product of (A) the difference between the Base year Basic Cost of Tax and Insurance and the coming calendar year's Basic Cost of Tax and Insurance multiplied by (B) the Tenant's Proportionate share of the tenant's leased space. Tenant shall pay to Landlord, on first day of each calendar month thereafter, the amount Landlord estimates to be Tenant's share of increase in cost. Any amount paid on such an estimate shall be subject to adjustment when actual Basic Costs are available for each calendar year.

6.5 At such time as Landlord has reason to believe that at some time within the immediately succeeding twelve (12) month period Tenant will owe Landlord any amounts pursuant to one or more of the preceding sections of this Article 6, Landlord may direct that Tenant prepay monthly a pro rata portion of the prospective future payment (*i.e.*, the prospective future payment divided by the number of months before the prospective future payment will be due). Tenant agrees that any such prepayment directed by Landlord shall be due and payable monthly on the same day that Minimum Guaranteed Rental is due.

6.6 In the event that any payment due from Tenant to Landlord is not received within 10 days after its due date for any reason whatsoever, or if any such payment is by check which is returned for insufficient funds, then in addition to the amount then due Tenant shall pay to Landlord interest on the amount then due at the maximum contractual rate which could legally be charged in the event of a loan of such amount to Tenant (but in no event to exceed 2% per month), such interest to accrue continuously on any unpaid balance until paid.

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ARTICLE 7

COMMON AREA

7.1 The term "Common Area" is defined for all purposes of this Lease as that part of the Office Building intended for the common use of all tenants, as may be more particularly set out in a recorded declaration of covenants, conditions, and restrictions to which the Office Building is subject, including among other facilities (as such may be applicable to the Office Building), parking areas, private streets and alleys, detention and filtration facilities serving the Office Building, landscaping, curbs, loading areas, sidewalks, lighting facilities, drinking fountains, meeting rooms, public toilets, and the like. In addition, although the roof(s) of the building(s) in the Office Building are not literally part of the Common Area, they will be deemed to be so included for purposes of (i) Landlord's ability to prescribe rules and regulations regarding same and (ii) their inclusion for purposes of common area maintenance reimbursements. Landlord reserves the right to change from time to time the dimensions and location of the Common Area, as well as the dimensions, identities, locations and types of any buildings, signs or other improvements in the Office Building. For example, and without limiting the generality of the immediately preceding sentence, Landlord may from time to time substitute for any parking area other areas reasonably accessible to the tenants of the Office Building, which areas may be elevated, surface or underground.

7.2 Tenant, and its employees and customers, and when duly authorized pursuant to the provisions of this Lease, its subtenants, licensees and concessionaires, shall have the nonexclusive right to use the Common Area (excluding roofs of buildings in the Office Building) as constituted from time to time, such use to be in common with Landlord, other tenants in the Office Building and other persons permitted by the Landlord to use the same, and subject to such reasonable rules and regulations governing use as Landlord from time to time prescribe. For example, and without limiting the generality of Landlord's ability to establish rules and regulations governing all aspects of the Common Area, Tenant agrees as follows:

(a) Landlord may from time to time designate specific areas within the Office Building or in reasonable proximity thereto in which automobiles owned by Tenant, its employees, subtenants, licensees and concessionaires shall be parked; and in this regard, Tenant shall furnish to Landlord upon request a complete list of license numbers of all automobiles operated by Tenant, its employees, its subtenants, its licensees or its concessionaires, or their employees; and Tenant agrees that if any automobile or other vehicle owned by Tenant or any of its employees, its subtenants, its licensees or its concessionaires, or their employees, shall at any time be parked in any part of the Office Building other than the specified areas designated for employee parking.

(b) Tenant shall not solicit business within the Common Area nor take any action which would interfere with the rights of other persons to use the Common Area.

(c) Landlord may temporarily close any part of the Common Area for such periods of time as may be necessary to make repairs or alterations or to prevent the public from obtaining prescriptive rights.

(d) With regard to the roof(s) of the building(s) in the Office Building, use of the roof(s) is reserved to Landlord or, with regard to any tenant demonstrating to Landlord's satisfaction a need to use same, to such tenant after receiving prior written consent from Landlord.

7.3 Except as otherwise provided in any recorded declaration pertaining to the Common Area, Landlord shall be responsible for the operation, management and maintenance of the Common Area, the manner of maintenance and the expenditures therefor to be in the sole discretion of Landlord, but to be generally in keeping with similar Office Buildings within the same geographical area as the Office Building. Without limiting the generality of the immediately preceding sentence, Tenant acknowledges that LANDLORD MAKES NO REPRESENTATION OR WARRANTY REGARDING WHETHER OR NOT LANDLORD WILL PROVIDE SECURITY SERVICES, OR IF SO, WHAT FORM OF SECURITY SERVICES WILL BE PROVIDED.

7.4 In addition to the rentals and other charges prescribed in this Lease, Tenant shall pay to Landlord Tenant's Proportionate Share of the cost of operation and maintenance of the Common Area which may be incurred by Landlord in its discretion, including, among other costs, those for lighting, cleaning, policing, inspecting, repairing, replacing, trash removal Landscaping, HOA and, if there is an enclosed common area or promenade in the Office Building, heating and cooling; a reasonable management fee for managing and operation of the Office Building, a reasonable allowance for Landlord's overhead costs, and the cost of any insurance for which Landlord is not reimbursed pursuant to Section 6.2, but specifically excluding all expenses paid or reimbursed pursuant to Article 6. In addition, although the roof(s) of the building(s) in the Office Building are not literally part of the Common Area, Landlord and Tenant agree that roof maintenance, repair and replacement, shall be included as a common area maintenance item to the extent not specifically allocated to Tenant under this Lease nor to another tenant pursuant to its lease. With regard to capital expenditures (i) the original investment in

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capital improvements, *i.e.*, upon the initial construction of the Office Building, shall not be included and (ii) improvements and replacements, to the extent capitalized on Landlord's records shall be included only to the extent of a reasonable depreciation or amortization over the useful life thereof (including interest accruals commensurate with Landlord's interests costs). The proportionate share to be paid by Tenant of the cost of operation and maintenance of the Common Area shall be computed on the ratio that the total floor area (all of which is deemed "leasable") of the Demised Premises bears to the total leasable floor area of all buildings within the Office Building (excluding, however, areas owned or maintained by a party or parties other than Landlord); provided that, in no event shall such share be less than the amount specified in Section 1.1(o) above.

If this Lease should commence on a date other than the first day of a calendar year or terminate on a date other than the last day of a calendar year, Tenant's reimbursement obligations under this Section 7.4 shall be prorated based upon Landlord's expenses for the entire calendar year. Tenant shall make such payments to Landlord, at intervals not more frequent than monthly. In the event that any payment due from Tenant to Landlord is not received within 10 days after its due date for any reason whatsoever, or if any such payment is by check which is returned for insufficient funds, then, in addition to the amount then due, Tenant shall pay to Landlord interest on the amount then due at the maximum contractual rate which could legally be charged in the event of a loan of such amount to Tenant (but in no event to exceed 1½% per month), such interest to accrue continuously on any unpaid balance until paid.

ARTICLE 8 MERCHANTS' ASSOCIATION OR PROMOTIONAL FUND

ARTICLE 9 USE AND CARE OF DEMISED PREMISES

9.1 Tenant shall commence business operations in the Demised Premises no later than the Commencement Date and shall operate its business in an efficient, high class and reputable manner. Tenant shall not at any time leave the Demised Premises vacant, but shall in good faith continuously throughout the term of this Lease conduct and carry on in the entire Demised Premises the type of business for which the Demised Premises is leased, fully fixtured. Tenant's business entails the sale of goods. Tenant shall, except during reasonable periods for repairing, cleaning and decorating, keep the Demised Premises open to the public for business during working hours. except to the extent Tenant may be prohibited from being open for business by applicable law, ordinance or governmental regulation.

9.2 The Demised Premises may be used only for the purpose or purposes specified in Section 1.1(r) above, and only under the trade name specified in Section 1.1(e) above (or, if Section 1.1(e) is not filled in, any trade name approved in advance by Landlord) and for no other purpose and under no other trade name, it being understood and acknowledged that Landlord has entered into this Lease in large part because it believes that such use and trade name will benefit the Office Building as a whole.

9.3 Tenant shall not, without Landlord's prior written consent, keep anything within the Demised Premises or use the Demised Premises for any purpose which creates a risk of toxic or otherwise hazardous substances or which increases the insurance premium cost or invalidates any insurance policy carried on the Demised Premises or other parts of the Office Building. All property kept, stored, or maintained within the Demised Premises by Tenant shall be at Tenant's sole risk. Tenant indemnifies Landlord and holds Landlord harmless from and against any and all liability, liens, claims, demands, damages, expenses, fees, costs, fines, penalties, suits, proceedings, actions and causes of action (including without limitation all attorneys' fees and expenses) arising out of or relating to, directly or indirectly, any violation or alleged violation by Tenant of any law, rule, regulation, order or determination of any government authority pertaining to health or the environment relating to the Demised Premises and the Office Building ("Environmental Laws"), now existing or hereafter arising, except for violations of Environmental Laws caused by Landlord. This indemnification survives the expiration or termination of this Lease. Tenant shall immediately notify Landlord if Tenant suspects, discovers or receives notice of any violation of Environmental Laws at the Demised Premises or the Office Building, and must cooperate with Landlord in identifying and investigating any such violation or suspected violation. Tenant further agrees to abide by the terms of any and all protocols, procedures and agreements of which Landlord gives Tenant written notice and which address the detection, management or remediation of environmental or health hazards at the Demised Premises or the Office Building.

9.4 Tenant shall not conduct within the Demised Premises any fire, auction, bankruptcy, "going-out-of-business," "lost-our-lease" or similar sale, nor shall Tenant operate within the Demised Premises a "wholesale" or "factory outlet" store, a cooperative store, a "second hand" store, a "surplus" store or a store commonly referred to as a "discount house" or a catalogue sales store except of merchandise which Tenant is permitted to sell over-the-counter. Tenant shall not advertise that it sells products or services at a "discount," "cut-price" or "cut-rate prices." The purpose for this restriction is the

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maintenance of a first-class Office Building image, not price regulation; therefore, Landlord agrees that items may be sold, and on occasion be advertised as being sold, at discounted prices as long as Tenant complies with all applicable laws and maintains an image consistent with a first-class Office Building.

9.5 Tenant shall not use, sell, treat, store, dispose of, or otherwise handle or possess, or allow to be released, discharged, or disposed of, any toxic or hazardous material ("Hazardous Material") subject to regulation for the protection of human health, public safety, or the environment, in or about the Demised Premises. In the event that a release or discharge of a Hazardous Material occurs in or about the Demised Premises, Tenant shall notify Landlord within twenty four (24) hours of learning of such release or discharge, including all information concerning the incident such as the composition and quantity of the Hazardous Material released into the environment, and shall provide Landlord copies of all notices, correspondence, and other communications with governmental agencies concerning the incident. Tenant shall indemnify, defend and hold Landlord harmless from and against all loss, liabilities, costs and expenses (including, without limitation, attorneys' fees, court costs, and costs of defense) suffered, claimed, or incurred during or after the term of this Lease arising out of the release or discharge of Hazardous Materials in or about the Demised Premises during the term of this Lease.

9.6 Tenant shall not permit any objectionable noises or odors to emanate from the Demised Premises; nor place or permit any radio, television, loudspeaker or amplifier on the roof or outside the Demised Premises or where the same can be seen or heard from outside the building; nor place any antenna, equipment, awning or other projection on the exterior of the Demised Premises; nor take any other action which would constitute a nuisance or disturb or endanger other tenants of the Office Building or unreasonably interfere with their use of their respective premises; nor permit any unlawful or immoral practice to be carried on or committed on the Demised Premises; nor do anything which would tend to injure the reputation of the Office Building.

9.7 Tenant shall take good care of the Demised Premises and keep the same free from waste at all times. Tenant shall not overload the floor in the Demised Premises, nor deface or injure the Demised Premises. Tenant shall keep the Demised Premises neat, clean. Tenant shall store all trash and garbage within the Demised Premises, or in a trash dumpster or similar container approved by Landlord as to type, location and screening; and Tenant shall arrange for the regular pick-up of such trash and garbage at Tenant's expense (unless Landlord finds it necessary to furnish such a service, in which event Tenant shall be charged an equitable portion of the total of charges to all tenants using the service). Receiving and delivery of goods and merchandise and removal of garbage and trash shall be made only in the manner and areas prescribed by Landlord. Tenant shall not operate an incinerator or burn trash or garbage within the Office Building.

9.8 Intentionally omitted.

9.9 Intentionally omitted.

9.10 Tenant shall procure at its sole expense any permits and licenses required for the transaction of business in the Demised Premises and otherwise comply with all applicable laws, ordinances, governmental regulations, and any covenant, condition, or restriction in any recorded declaration affecting the Office Building. In the event Tenant uses all or any portion of the Demised Premises for food preparation, Tenant shall comply with all regulations and requirements of applicable health and safety authorities, including, if required by such authorities, installing an adequate grease trap (or verifying that the existing grease trap, if there is one, is adequate). Tenant shall arrange for regular and frequent cleaning of any such grease trap so as to fully and completely prevent any overflow of the grease trap. In addition, if the nature of Tenant's business makes it advisable for Tenant to take any extra precautions (for example, in the case of a business which is affected by so-called "dram shop" laws, Tenant's compliance with all "dram shop" educational programs and procedures), Tenant shall take all such extra precautions. At Landlord's request, Tenant shall deliver to Landlord copies of all such permits and licenses and proof of Tenant's compliance with all such laws, ordinances, governmental regulations and extra precautions. Landlord does not represent or warrant that it will obtain for Tenant (or that Tenant will be able to obtain) any license or permit.

ARTICLE 10

MAINTENANCE AND REPAIR OF DEMISED PREMISES

10.1 Landlord shall keep the foundation, the exterior walls (except plate glass; windows, doors and other exterior openings; window and door frames, molding closure devices, locks and hardware; special store fronts; lighting, heating, air conditioning, plumbing and other electrical, mechanical and electromotive installation, equipment and fixtures; signs, placards, decorations or other advertising media of any type; and interior painting or other treatment of exterior walls) and roof of the Demised Premises in good repair. Landlord, however, shall not be required to make any repairs occasioned by the act or negligence of Tenant, its agents, employees, subtenants, licensees and concessionaires (including, but not limited

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to roof leaks resulting from Tenant's installation of air conditioning equipment or any other roof penetration or placement); and the provisions of the previous sentence are expressly recognized to be subject to the provisions of Article 17 and Article 18 of this Lease. In the event that the Demised Premises should become in need of repairs required to be made by Landlord hereunder, Tenant shall give immediate written notice thereof to Landlord and Landlord shall have a reasonable time after receipt by Landlord of such written notice in which to make such repairs.

10.2 Tenant shall keep the Demised Premises in good, clean and habitable condition and shall at its sole cost and expense keep the Demised Premises free of insects, rodents, vermin and other pests and make all needed repairs and replacements, including replacement of cracked or broken glass, except for repairs and replacements required to be made by Landlord under the provisions of Section 10.1, Article 17 and Article 18. Without limiting the coverage of the previous sentence, it is understood that Tenant's responsibilities therein include the repair and replacement of all lighting, heating, air conditioning, plumbing, and other electrical, mechanical and electromotive installation, equipment and fixtures and also include all utility repairs in ducts, conduits, pipes and wiring, and any sewer stoppage located in, under and above the Demised Premises, regardless of when or how the defect or other cause for repair or replacement occurred or became apparent. If any repairs required to be made by Tenant hereunder are not made within ten days after written notice delivered to Tenant by Landlord, Landlord may at its option make such repairs without liability to Tenant for any loss or damage which may result to its stock or business by reason of such repairs; and Tenant shall pay to Landlord upon demand, as additional rental hereunder, the cost of such repairs plus interest at the maximum contractual rate which could legally be charged in the event of a loan of such payment to Tenant (but in no event to exceed 1½% per month), such interest to accrue continuously from the date of payment by Landlord until repayment by Tenant. At the expiration of this Lease, Tenant shall surrender the Demised Premises in good condition, excepting reasonable wear and tear and losses required to be restored by Landlord in Section 10.1, Article 17, and Article 18 of this Lease.

ARTICLE 11

ALTERATIONS

11.1 Tenant shall not make any alterations, additions or improvements to the Demised Premises without the prior written consent of Landlord, except for the installation of unattached, movable trade fixtures which may be installed without drilling, cutting or otherwise defacing the Demised Premises. Without limiting the generality of the preceding sentence, any installation or replacement of Tenant's heating or air conditioning equipment must be effected strictly in accordance with Landlord's instructions. All alterations, additions, improvements and fixtures (including, without limitation, all floor coverings and all heating and air conditioning equipment but excluding Tenant's unattached, readily movable furniture and office equipment) which may be made or installed by either party upon the Demised Premises shall remain upon and be surrendered with the Demised Premises and become the property of Landlord at the termination of this Lease, unless Landlord requests their removal, in which event Tenant shall remove the same and restore the Demised Premises to its original condition at Tenant's expense.

11.2 All construction work done by Tenant within the Demised Premises shall be performed in a good and workmanlike manner, lien-free and in compliance with all governmental requirements, and in such manner as to cause a minimum of interference with other construction in progress and with the transaction of business in the Office Building. Tenant agrees to indemnify Landlord and hold Landlord harmless against any loss, liability or damage resulting from such work, and Tenant shall, if requested by Landlord, furnish a bond or other security satisfactory to Landlord against any such loss, liability or damage.

11.3 In the event Tenant uses a general contractor to perform construction work within the Demised Premises, Tenant shall, prior to the commencement of such work, require said general contractor to execute and deliver to Landlord a waiver and release of any and all claims against Landlord and liens against the Office Building to which such contractor might at any time be entitled on the form attached as Exhibit "K", and to execute and record a Bond to Pay Claims (the "Bond") in accordance with Chapter 53, Subchapter 1 of the Texas Property Code, as such may be amended, superseded or replaced from time to time, and shall deliver a copy of the recorded Bond to Landlord. The delivery of the waiver and release of lien and the Bond within the time period as set forth above shall be a condition precedent to Tenant's ability to enter on and begin its construction work at the Demised Premises and, if applicable, to any reimbursement from Landlord for its construction work.

11.4 In the event that Landlord elects to remodel all or any portion of the Office Building, Tenant will cooperate with such remodeling, including Tenant's tolerating temporary inconveniences (and even the temporary removal of Tenant's signs in order to facilitate such remodeling, as it may relate to the exterior of the Demised Premises).

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ARTICLE 12

LANDLORD'S RIGHT OF ACCESS

12.1 Landlord shall have the right to enter upon the Demised Premises upon providing 24 hours' notice for the purpose of inspecting the same, or of making repairs to the Demised Premises, or of making repairs, alterations or additions to adjacent premises, or of showing the Demised Premises to prospective purchasers, tenants or lenders. Landlord shall have the right to enter upon the Demised Premises upon the Demised Premises at any time for the purpose of an emergency (i.e. Fire, Flood, Natural Disaster, City or Police notice)

12.2 Tenant will permit Landlord to place and maintain "For Rent" or "For Lease" signs on the Demised Premises during the last 180 days of the Lease Term, it being understood that such signs shall in no way affect Tenant's obligations pursuant to Section 9.4, Section 13.1 or any other provisions of this Lease.

12.3 Use of the roof above the Demised Premises is reserved to Landlord; however, Landlord agrees that it will not use the roof above the Demised Premises for signage or other advertising displays without Tenant's consent.

ARTICLE 13

SIGNS; STORE FRONTS

13.1 Tenant shall not, without Landlord's prior written consent (a) make any changes to the storefront, or (b) install any exterior lighting, decorations, paintings, awnings, canopies or the like, or (c) erect or install any signs, window or door lettering, placards, decorations or advertising media of any type which can be viewed from the exterior of the Demised Premises. All signs, lettering, placards, decorations and advertising media (including, without limitation, the sign required by Section 13.2 below) shall conform in all respects to the sign criteria set forth in the attached Exhibit "C", and as established by Landlord for the Office Building from time to time in the exercise of its sole discretion, shall be designed, constructed and installed at Tenant's sole cost and expense, and shall be subject to Landlord's requirements as to sign copy, construction, method of attachment, size, shape, height, lighting, color and general appearance. All signs shall be kept in good condition and in proper operating order at all times.

ARTICLE 14

UTILITIES

14.1 Landlord agrees to cause to be provided to the Office Building the necessary mains, conduits and other facilities necessary to supply water, electricity, water and sewerage service to the building in which the Demised Premises are located.

14.2 Tenant shall promptly pay to Landlord Tenant's share of all charges for electricity, water, sewerage service and other utilities furnished to the Demised Premises. Landlord may, if it so elects, furnish one or more utility services to Tenant, and in such event Tenant shall purchase the use of such services as are tendered by Landlord, and shall pay on demand as additional rental. The Electrical costs for the Demised Premises served by the electrical meter that serves the Premises (the "Master Space"). The Metered Space currently total 10,622 square feet of Rentable Area, and Tenant's share of Electrical Costs is 50% ("Tenant's Electrical Share"). Electrical Costs means all costs incurred by Landlord including without limitation (i) electrical services used in operation,, maintenance, and occupancy of Metered Space: (ii) sales, use, excise and other taxes assessed by governmental authorities on electrical services supplied to the Metered Space and (iii) all other costs of providing, monitoring, managing, contracting for , or otherwise incurred in obtaining electrical services for Metered space. such a amount shall be payable in monthly installments due on the first (1st) day of each colander month. Each installment shall be based on actual billing paid by Landlord, or Landlord's estimate of the amount due for each month. From time to time during any calendar year, landlord may estimate and re-estimate the Electrical Costs to be due by Tenant for that calendar year and deliver a copy of the estimate or re-estimate to Tenant. Therefore, the monthly installments of Electrical Costs payable by Tenant shall be appropriately adjusted in accordance with the estimate so that by the end of calendar year in question, Tenant shall have paid all Tenant's Electrical Cots as actually paid by Landlord.

Landlord may at any time discontinue furnishing any such service without obligation to Tenant other than to connect the Demised Premises to the public utility, if any, furnishing such service.

14.3 Landlord shall not be liable for any interruption whatsoever in utility services not furnished by Landlord, nor for interruptions in utility services furnished by Landlord which are due to fire, accident, strike, acts of God or other causes

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beyond the control of Landlord or which are necessary or useful in connection with making any alterations, repairs or improvements.

14.4 Adjustment to Basic Costs and Utilities Costs: With respect to any calendar year or partial calendar year in which the other section of the Premises is not occupied by any other Tenant, therefore, the Basic Costs and Utilities Costs for such a period shall be increased to 100%.

ARTICLE 15

INSURANCE COVERAGES

15.1 Landlord shall procure and maintain throughout the term of this Lease a policy or policies of insurance, at its sole cost and expense (but subject to Article 6 above), causing the Office Building to be insured under standard fire and extended coverage insurance and liability insurance (plus whatever endorsements or special coverages Landlord, at its sole discretion, may consider appropriate), to the extent necessary to comply with Landlord's obligations pursuant to other provisions of this Lease.

15.2 Tenant shall procure and maintain throughout the term of this Lease a policy or policies of insurance, at its sole cost and expense, causing Tenant's fixtures and contents to be insured under standard fire and extended coverage insurance and, with regard to liability insurance, insuring both Landlord and Tenant against all claims, demands or actions arising out of or in connection with Tenant's use or occupancy of the Demised Premises, or by the condition of the Demised Premises. The limits of Tenant's commercial general liability policy or policies shall be in an amount not less than \$1,000,000 per occurrence (and no offset for occurrences on property other than the Demised Premises), and shall be written by insurance companies satisfactory to Landlord, and such policies shall be primary and noncontributory to any insurance maintained by Landlord. Tenant shall obtain a written obligation on the part of each insurance company to notify Landlord at least twenty days prior to cancellation of such insurance. Such policies or duly executed certificates of insurance shall be promptly delivered to Landlord and renewals thereof as required shall be delivered to Landlord at least thirty days prior to the expiration of the respective policy terms. If Tenant should fail to comply with the foregoing requirement relating to insurance, Landlord may obtain such insurance and Tenant shall pay to Landlord on demand as additional rental hereunder the premium cost thereof plus interest at the maximum contractual rate (but in no event to exceed 1½% per month) from the date of payment by Landlord until repaid by Tenant.

ARTICLE 16

WAIVER OF LIABILITY; MUTUAL WAIVER OF SUBROGATION; INDEMNIFICATION

16.1 Landlord and Landlord's agents and employees shall not be liable to Tenant, nor to Tenant's employees, agents or visitors, nor to any other person whomsoever, for any injury to person or damage to property caused by the Demised Premises or other portions of the Office Building becoming out of repair or by defect or failure of any structural element of the Demised Premises or of any equipment pipes or wiring, or broken glass, or by the backing up of drains, or by gas, water, steam, electricity or oil leaking, escaping or flowing into the Demised Premises (except where due to Landlord's willful failure to make repairs required to be made hereunder, after the expiration of a reasonable time after written notice to Landlord of the need for such repairs), nor shall Landlord be liable to Tenant, nor to Tenant's employees, agents or visitors, nor to any other person whomsoever, for any loss or damage that may be occasioned by or through the acts or omissions of other tenants of the Office Building or of any other persons whomsoever, excepting only duly authorized employees and agents of Landlord. Landlord shall not be held responsible in any way on account of any construction, repair or reconstruction (including widening) of any private or public roadways, walkways or utility lines.

16.2 Landlord shall not be liable to Tenant or to Tenant's employees, agents, or visitors, or to any other person whomsoever, for any injury to person or damage to property on or about the Demised Premises or the Common Area caused by the negligence or misconduct of Tenant, its employees, subtenants, licensees or concessionaires, or of any other person entering the Office Building under express or implied invitation of Tenant (with the exception of customers in the Common Area), or arising out of the use of the Demised Premises by Tenant and the conduct of its business therein, or arising out of any breach or default by Tenant in the performance of its obligations under this Lease; and Tenant hereby agrees to indemnify Landlord and hold Landlord harmless from any loss, expense or claims arising out of such damage or injury. This provision shall survive the expiration or earlier termination of the Lease.

16.3 Landlord and Tenant each hereby release the other from any and all liability or responsibility to the other, or to any other party claiming through or under them by way of subrogation or otherwise, for any loss or damage to property caused by a casualty which is insurable under standard fire and extended coverage insurance; provided, however, that this mutual

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waiver shall be applicable only with respect to a loss or damage occurring during the time when property insurance policies, which are readily available in the marketplace, contain a clause or permit an endorsement to the effect that any such release shall not adversely affect or impair the policy or the right of the insured party to receive proceeds under the policy; provided, further, that this release shall not be applicable to the portion of any damage which is not reimbursed by the damaged party's insurer because of the "deductible" in the damaged party's insurance coverage. The release specified in this Section 16.3 is cumulative with any releases or exculpations which may be contained in other provisions of this Lease.

16.4 TENANT SHALL DEFEND, INDEMNIFY AND HOLD HARMLESS LANDLORD, ITS AGENTS, EMPLOYEES, OFFICERS, DIRECTORS, PARTNERS AND SHAREHOLDERS ("LANDLORD'S RELATED PARTIES") FROM AND AGAINST ANY AND ALL LIABILITIES, JUDGMENTS, DEMANDS, CAUSES OF ACTION, CLAIMS, LOSSES, DAMAGES, COSTS AND EXPENSES, INCLUDING REASONABLE ATTORNEYS FEES AND COSTS, ARISING OUT OF THE USE, OCCUPANCY, CONDUCT, OPERATION, OR MANAGEMENT OF THE DEMISED PREMISES BY, OR THE WILLFUL MISCONDUCT OR NEGLIGENCE OF, TENANT, ITS OFFICERS, CONTRACTORS, LICENSEES, AGENTS, SERVANTS, EMPLOYEES, GUESTS, INVITEES, OR VISITORS IN OR ABOUT THE OFFICE BUILDING OR DEMISED PREMISES OR ARISING FROM ANY BREACH OR DEFAULT UNDER THIS LEASE BY TENANT, OR ARISING FROM ANY ACCIDENT, INJURY, OR DAMAGE, HOWSOEVER AND BY WHOMSOEVER CAUSED, TO ANY PERSON OR PROPERTY, OCCURRING IN OR ABOUT THE DEMISED PREMISES. **THE INDEMNITY CONTAINED IN THIS SECTION 16.4 IS INDEPENDENT OF TENANT'S INSURANCE, WILL NOT BE LIMITED BY COMPARATIVE NEGLIGENCE STATUTES OR DAMAGES PAID UNDER WORKERS' COMPENSATION OR SIMILAR EMPLOYEE BENEFIT ACTS, WILL SURVIVE THE END OF THE TERM, AND WILL APPLY EVEN IF AN INJURY IS CAUSED IN PART BY THE ORDINARY NEGLIGENCE OR STRICT LIABILITY OF LANDLORD, BUT WILL NOT APPLY TO THE EXTENT AN INJURY IS CAUSED BY THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF LANDLORD.**

16.5 LANDLORD AND TENANT RELEASE EACH OTHER FROM ALL CLAIMS OR LIABILITIES FOR DAMAGE TO THE DEMISED PREMISES OR THE OFFICE BUILDING, DAMAGE TO OR LOSS OF PERSONAL PROPERTY WITHIN THE OFFICE BUILDING, AND LOSS OF BUSINESS OR REVENUES, THAT ARE COVERED BY THE RELEASING PARTY'S PROPERTY INSURANCE OR THAT WOULD HAVE BEEN COVERED BY THE REQUIRED INSURANCE IF THE PARTY FAILS TO MAINTAIN THE PROPERTY COVERAGES REQUIRED BY THIS LEASE. THE PARTY INCURRING THE DAMAGE OR LOSS WILL BE RESPONSIBLE FOR ANY DEDUCTIBLE OR SELF-INSURED RETENTION UNDER ITS PROPERTY INSURANCE. LANDLORD AND TENANT WILL NOTIFY THE ISSUING PROPERTY INSURANCE COMPANIES OF THE RELEASE SET FORTH IN THIS PARAGRAPH AND WILL HAVE THE PROPERTY INSURANCE POLICIES ENDORSED, IF NECESSARY, TO PREVENT INVALIDATION OF COVERAGE. THIS RELEASE WILL NOT APPLY IF IT INVALIDATES THE PROPERTY INSURANCE COVERAGE OF THE RELEASING PARTY. **THE RELEASE IN THIS PARAGRAPH WILL APPLY EVEN IF THE DAMAGE OR LOSS IS CAUSED IN WHOLE OR IN PART BY THE NEGLIGENCE OR STRICT LIABILITY OF THE RELEASED PARTY, BUT WILL NOT APPLY TO THE EXTENT THE DAMAGE OR LOSS IS CAUSED BY THE GROSS NEGLIGENCE OR WILLFUL MISCONDUCT OF THE RELEASED PARTY.**

ARTICLE 17

DAMAGES BY CASUALTY

17.1 Tenant shall give immediate written notice to the Landlord of any damage caused to the Demised Premises by fire or other casualty.

17.2 In the event that the Demised Premises shall be damaged or destroyed by fire or other casualty insurable under standard fire and extended coverage insurance and Landlord does not elect to terminate this Lease as hereinafter provided, Landlord shall proceed with reasonable diligence and at its sole cost and expense to rebuild and repair the Demised Premises. In the event (a) the building in which the Demised Premises are located is destroyed or substantially damaged by a casualty not covered by Landlord's insurance, or (b) such building is destroyed or rendered untenable to an extent in excess of fifty percent of the first floor area by a casualty covered by Landlord's insurance, or (c) the holder of a mortgage, deed of trust or other lien on such building at the time of the casualty elects, pursuant to such mortgage, deed of trust or other lien, to require the use of all or part of Landlord's insurance proceeds in satisfaction of all or part of the indebtedness secured by the mortgage, deed of trust or other lien, then Landlord may elect either to terminate this Lease or to proceed to rebuild and repair the Demised Premises. Landlord shall give written notice to Tenant of such election within sixty days after the occurrence of such casualty and, if it elects to rebuild and repair, shall proceed to do so with reasonable diligence and at its sole cost and expense.

17.3 Landlord's obligation to rebuild and repair under this Article 17 shall in any event be limited to restoring one of the following (as may be applicable (a) if this Lease does not include an attached exhibit describing Landlord's initial

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construction responsibility ("Landlord's Work"), restoring the Demised Premises to substantially the condition in which the same existed prior to such casualty, exclusive of any alterations, additions, improvements, fixtures and equipment installed by Tenant; or (b) restoring Landlord's Work, as described in the applicable exhibit attached to this Lease (if such an exhibit is attached) to substantially the same condition in which the same existed prior to the casualty. Tenant agrees that promptly after completion of such work by Landlord, Tenant will proceed with reasonable diligence and at Tenant's sole cost and expense to restore, repair and replace all alterations, additions, improvements, fixtures, signs and equipment installed by Tenant, or, if an exhibit describing Tenant's Work is attached hereto, all items of Tenant's Work as described in such exhibit, as the case may be.

17.4 Tenant agrees that during any period of reconstruction or repair of the Demised Premises, it will continue the operation of its business within the Demised Premises to the extent practicable. During the period from the occurrence of the casualty until Landlord's repairs are completed, the Minimum Guaranteed Rental shall be reduced to such extent as may be fair and reasonable under the circumstances; however, there shall be no abatement of the other charges provided for herein.

ARTICLE 18

EMINENT DOMAIN

18.1 If more than thirty percent (30%) of the floor area of the Demised Premises should be taken for any public or quasi-public use under any governmental law, ordinance or regulation or by right of eminent domain or by private purchase in lieu thereof, this Lease shall terminate and the rent shall be abated during the unexpired portion of this Lease, effective on the date physical possession is taken by the condemning authority.

18.2 If less than thirty percent (30%) of the floor area of the Demised Premises should be taken as aforesaid, this Lease shall not terminate; however, the Minimum Guaranteed Rental payable hereunder during the unexpired portion of this Lease shall be reduced in proportion to the area taken, effective on the date physical possession is taken by the condemning authority. Following such partial taking, Landlord shall make all necessary repairs or alterations to the remaining Demised Premises or, if an exhibit describing Landlord's Work is attached to this Lease, all necessary repairs within the scope of Landlord's Work as described in such exhibit, as the case may be, required to make the remaining portions of the Demised Premises an architectural whole.

18.3 If any part of the Common Area should be taken as aforesaid, this Lease shall not terminate, nor shall the rent payable hereunder be reduced, except that (a) either Landlord or Tenant may terminate this Lease if the area of the Common Area remaining following such taking plus any additional parking area provided by Landlord in reasonable proximity to the Office Building shall be less than seventy percent of the area of the Common Area immediately prior to the taking, and (b) Landlord may terminate this Lease if the parking area remaining in the Common Area following the taking shall be less than the minimum prescribed by applicable ordinance. Any election to terminate this Lease in accordance with this provision should be evidenced by written notice of termination delivered to the other party within thirty days after date physical possession is taken by condemning authority.

18.4 All compensation awarded for any taking (or the proceeds of private sale in lieu thereof) of the Demised Premises or Common Area shall be the property of Landlord, and Tenant hereby assigns its interest in any such award to Landlord; provided, however, Landlord shall have no interest in any award made to Tenant for Tenant's moving and relocation expenses or for the loss of Tenant's fixtures and other tangible personal property if a separate award for such items is made to Tenant as long as such separate award does not reduce the amount of the award that would otherwise be awarded to Landlord.

ARTICLE 19

ASSIGNMENT AND SUBLETTING

19.1 Tenant shall not assign or in any manner transfer this Lease or any estate or interest therein, or sublet the Demised Premises or any part thereof, or grant any license, concession or other right of occupancy of any portion of the Demised Premises without the prior written consent of Landlord. Landlord agrees that it will not withhold consent in a wholly unreasonable and arbitrary manner (as further explained in Section 28.4 of this Lease); however, in determining whether or not to grant its consent, Landlord shall be entitled to take into consideration factors such as Landlord's desired tenant mix, the reputation and net worth of the proposed transferee, and the then current market conditions (including market rentals). In addition, Landlord shall also be entitled to charge Tenant a reasonable fee for processing Tenant's request. Consent by

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Landlord to one or more assignments or sublettings shall not operate as a waiver of Landlord's rights as to any subsequent assignments and sublettings.

19.2 If Tenant is a corporation, partnership or other entity and if at any time during the term of this Lease the person or persons who own a majority of either the outstanding voting rights or the outstanding ownership interests of Tenant at the time of the execution of this Lease cease to own a majority of voting rights or ownership interests (except as a result of transfers by devise or descent), the loss of a majority of such voting rights or ownership interests shall be deemed an assignment of this Lease by Tenant and, therefore, subject in all respects to the provisions of Section 19.1 above. The previous sentence shall not apply, however, if at the time of the execution of this Lease, Tenant is a corporation and the outstanding voting shares of capital stock of Tenant are listed on a recognized security exchange or over-the-counter market.

19.3 Any assignee or sublessee of an interest in and to this Lease shall be deemed, by acceptance of such assignment or sublease or by taking actual or constructive possession of the Demised Premises, to have assumed all of the obligations set forth in or arising under this Lease. Such assumption shall be effective as of the earlier of the date of such assignment or sublease or the date on which the assignee or sublessee obtains possession of the Demised Premises.

19.4 Notwithstanding any assignment or subletting, Tenant and any guarantor of Tenant's obligations under this Lease shall at all times remain fully responsible and liable for the payment of the rent herein specified and for compliance with all of its other obligations under this Lease (even if future assignments and sublettings occur subsequent to the assignment or subletting by Tenant, and regardless of whether or not Tenant's approval has been obtained for such future assignments and sublettings). Moreover, in the event that the rental due and payable by a sublessee (or a combination of the rental payable under such sublease plus any bonus or other consideration therefor or incident thereto) exceeds the rental payable under this Lease, or if with respect to a permitted assignment, permitted license or other transfer by Tenant permitted by Landlord, the consideration payable to Tenant by the assignee, licensee or other transferee exceeds the rental payable under this Lease, then Tenant shall be bound and obligated to pay Landlord all such excess rental and other excess consideration within ten (10) days following receipt thereof by Tenant from such sublessee, assignee, licensee or other transferee, as the case may be. Finally, in the event of an assignment or subletting, it is understood and agreed that all rentals paid to Tenant by an assignee or sublessee shall be received by Tenant in trust for Landlord, to be forwarded immediately to Landlord without offset or reduction of any kind; and upon election by Landlord such rentals shall be paid directly to Landlord as specified in Section 4.1 of this Lease (to be applied as a credit and offset to Tenant's rental obligation).

19.5 Tenant shall not mortgage, pledge or otherwise encumber its interest in this Lease or in the Demised Premises.

19.6 In the event of the transfer and assignment by Landlord of its interest in this Lease and in the building containing the Demised Premises to a person expressly assuming Landlord's obligations under this Lease, Landlord shall thereby be released from any further obligations hereunder, and Tenant agrees to look solely to such successor in interest of the Landlord for performance of such obligations. Any security given by Tenant to secure performance of Tenant's obligations hereunder may be assigned and transferred by Landlord to such successor in interest and Landlord shall thereby be discharged of any further obligations relating thereto.

ARTICLE 20

SUBORDINATION; ATTORNMEN; ESTOPPELS

20.1 Tenant accepts this Lease subject and subordinate to any mortgage, deed of trust or other lien presently existing or hereafter placed upon the Office Building which includes the Demised Premises, and to any renewals and extension thereof. Tenant agrees that any mortgagee shall have the right at any time to subordinate its mortgage, deed of trust or other lien to this Lease; provided, however, notwithstanding that this Lease may be (or made to be) superior to a mortgage, deed of trust or other lien, the mortgagee shall not be liable for prepaid rentals, Security Deposits and claims accruing during Landlord's ownership; further provided that the provisions of a mortgage, deed of trust or other lien relative to the rights of the mortgagee with respect to proceeds arising from an eminent domain taking (including a voluntary conveyance by Landlord) and provisions relative to proceeds arising from insurance payable by reason of damage to or destruction of the Demised Premises shall be prior and superior to any contrary provisions contained in this instrument with respect to the payment or usage thereof. Landlord is hereby irrevocably vested with full power and authority to subordinate this Lease to any mortgage, deed of trust or other lien hereafter placed upon the Demised Premises or the Office Building as a whole, and Tenant agrees upon demand to execute such further instruments subordinating this Lease as Landlord may request; provided, however, that upon Tenant's written request and notice to Landlord, Landlord shall use such efforts as Landlord

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deems reasonable to obtain from any such mortgagee a written agreement that after a foreclosure (or a deed in lieu of foreclosure) the rights of Tenant shall remain in full force and effect during the term of this Lease so long as Tenant shall continue to recognize and perform all of the covenants and conditions of this Lease.

20.2 At any time when the holder of an outstanding mortgage, deed of trust or other lien covering Landlord's interest in the Demised Premises has given Tenant written notice of its interest in this Lease, Tenant may not exercise any remedies for default by Landlord hereunder unless and until the holder of the indebtedness secured by such mortgage, deed of trust or other lien shall have received written notice of such default and a reasonable time (not less than 30 days) shall thereafter have elapsed without the default having been cured.

20.3 Tenant agrees that it will from time to time upon request by Landlord execute and deliver to Landlord a written statement addressed to Landlord (or to a party designated by Landlord), which statement shall identify Tenant and this Lease, shall certify that this Lease is unmodified and in full force and effect (or if there have been modifications, that the same is in full force and effect as so modified), shall confirm that Landlord is not in default as to any obligations of Landlord under this Lease (or if Landlord is in default, specifying any default), shall confirm Tenant's agreements contained above in this Article 20, and shall contain such other information or confirmations as Landlord may reasonably require. Landlord is hereby irrevocably appointed and authorized as the agent and attorney-in-fact of Tenant to execute and deliver any such written statement on Tenant's behalf if Tenant fails to do so within seven (7) days after the delivery of a written request from Landlord to Tenant.

ARTICLE 21

DIRECTION OF TENANT'S ENERGIES

ARTICLE 22

DEFAULT BY TENANT AND REMEDIES

22.1 The following events shall be deemed to be events of default by Tenant under this Lease:

(a) Tenant shall fail to pay any installment of rental or any other obligation under this Lease involving the payment of money and such failure shall continue for a period of ten (10) days after written notice thereof to Tenant; provided, however, that for each calendar year during which Landlord has already given Tenant one written notice of the failure to pay an installment of rental, no further notice shall be required (*i.e.*, the event of default will automatically occur on the tenth day after the date upon which the rental was due).

(b) Tenant shall fail to comply with any provision of this Lease, other than as described in subsection (a) above, and either shall not cure such failure within fifteen (15) days after written notice thereof to Tenant, or shall cure that particular failure but shall again fail to comply with the same provision of the lease within twelve months after Landlord's written notice.

(c) Tenant or any guarantor of Tenant's obligations under this Lease shall become insolvent, or shall make a transfer in fraud of creditors, or shall make an assignment for the benefit of creditors.

(d) Tenant or any guarantor of Tenant's obligations under this Lease shall file a petition under any section or chapter of the federal Bankruptcy Code, as amended, or under any similar law or statute of the United States or any state thereof; or Tenant or any guarantor of Tenant's obligations under this Lease shall be adjudged bankrupt or insolvent in proceedings filed against Tenant or any guarantor of Tenant's obligations under this Lease thereunder.

(e) A receiver or Trustee shall be appointed for the Demised Premises or for all or substantially all of the assets of Tenant or any guarantor of Tenant's obligation under this Lease.

(f) Tenant shall desert or vacate or shall commence to desert or vacate the Demised Premises or any substantial portion of the Demised Premises or at any time prior to the last month of the Lease Term shall remove or attempt to remove, without the prior written consent of Landlord, all or a substantial amount of Tenant's goods, wares, equipment, fixtures, furniture, or other personal property.

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(g) Tenant shall do or permit to be done anything which creates a lien upon the Demised Premises or upon all or any part of the Office Building.

(h) Tenant shall breach any covenant, condition, or restriction in any recorded declaration affecting the Office Building or violate any rule or regulation promulgated by Landlord applicable to Tenant.

22.2 Upon the occurrence of any such events of default, Landlord shall have the option to pursue any one or more of the following remedies subject to provide the Tenant with a written notice of default at least five (5) business days prior to taking any remedial action for any alleged breach of the lease agreement. The Landlord shall give the Tenant no less than twenty-four (24) hours written notice before entering the demised premises. Such entry shall be conducted during reasonable business hours unless otherwise agreed upon by both parties. During any such entry by the Landlord, the Landlord shall be accompanied by an employee or representative of the Tenant to ensure the security and privacy of the Tenant's operations. The Landlord shall not remove, tamper with, or otherwise interfere with the Tenant's property located within the demised premises without the express written consent of the Tenant. Any removal of property shall only occur with mutual agreement between both parties, documented in writing.

(a) Without any further notice or demand whatsoever, Tenant shall be obligated to reimburse Landlord for the damages suffered by Landlord as a result of the event of default, plus interest on such amount at the maximum contractual rate which could legally be charged in the event of a loan of such amount to Tenant (but in no event to exceed 1½% per month); and Landlord may pursue a monetary recovery from Tenant. In this regard, and without limiting the generality of the immediately preceding sentence, if Tenant fails to open for business as required in this Lease or, having opened for business, subsequently deserts or vacates the Demised Premises or otherwise ceases to conduct business in the Demised Premises as required in this Lease, then Landlord at its option may seek monetary recovery for the loss of Tenant's anticipated contribution to commerce within the Office Building; moreover, Landlord and Tenant further agree that in as much as the exact amount of damages would be difficult to determine, liquidated damages will be due monthly (i) in an amount equal to fifteen percent of the Minimum Guaranteed Rental payable for that month (i.e., Tenant will pay Minimum Guaranteed Rental equal to 100% of the amount specified in Section 1.1(m) of this Lease) if Tenant subsequently deserts or vacates the Demised Premises or otherwise ceases to conduct business in the Demised Premises as required by this Lease (including, but not limited to, failing to comply with the requirements of Section 9.1 of this Lease).

(b) Without any further notice or demand whatsoever, Landlord may take any one or more of the actions permissible at law to insure performance by Tenant of Tenant's covenants and obligations under this Lease. In this regard, and without limiting the generality of the immediately preceding sentence, it is agreed that if Tenant fails to open for business as required in this Lease or, having opened for business deserts or vacates the Demised Premises, Landlord may enter upon and take possession of such Demised Premises in order to protect them from deterioration and continue to demand from Tenant the monthly rentals and other charges provided in this Lease, without any obligation to relet except as herein provided; however, such action by Landlord shall not be deemed as an acceptance of Tenant's surrender of the Demised Premises unless Landlord expressly notifies Tenant of such acceptance in writing pursuant to this subsection (b). Tenant hereby acknowledging that Landlord shall otherwise be reletting as Tenant's agent and Tenant furthermore hereby agreeing to pay to Landlord on demand any deficiency that may arise between the monthly rentals and other charges provided in this Lease and that actually collected by Landlord. It is further agreed in this regard that in the event of any default described in subsection (b) of Section 22.1 of this Lease, Landlord shall have the right to enter upon the Demised Premises by force if necessary without being liable for prosecution or any claim for damages therefor, and do whatever Tenant is obligated to do under the terms of this Lease; and Tenant agrees to reimburse Landlord on demand for any expenses which Landlord may incur in thus effecting compliance with Tenant's obligations under this Lease, and Tenant further agrees that Landlord shall not be liable for any damages resulting to the Tenant from such action. Finally, it is agreed that in the event of any default described in subsection (g) of Section 22.1 of this Lease, Landlord may pay or bond around such lien, whether or not contested by Tenant, and in such event Tenant agrees to reimburse Landlord on demand for all costs and expenses incurred in connection with any such action, with Tenant further agreeing that Landlord shall in no event be liable for any damages or claims resulting from such action.

(c) Without any further notice or demand whatsoever, Landlord may enter upon and take possession of the Demised Premises and expel or remove Tenant and any other person who may be occupying the Demised Premises or any part of the Demised Premises, by force if necessary (except to the extent prohibited by Texas law), without being liable for prosecution or any claim for damages for such action. Such expulsion and removal by Landlord cannot be deemed a termination or forfeiture of this Lease or acceptance of Tenant's surrender of the Demised Premises unless Landlord expressly notifies Tenant in writing that Landlord is terminating or forfeiting this Lease or accepting Tenant's surrender of the Demised Premises. If Landlord expels or removes Tenant or any other person from the Demised Premises without terminating or forfeiting this Lease or accepting Tenant's surrender of the Demised Premises, Landlord shall attempt in good faith to relet the Demised Premises, provided that Landlord's obligations as to reletting activities shall be subject to Section

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22.9, below. Until Landlord is able, through reasonable efforts, the nature of which efforts shall be at the sole discretion of Landlord, to relet the Demised Premises under terms satisfactory to Landlord, in its sole discretion, Tenant shall pay to Landlord on or before the first day of each calendar month, the monthly rentals and other charges provided in this Lease. If and after the Demised Premises have been relet by Landlord, Tenant shall pay to Landlord on the 20th day of each calendar month the difference between the monthly rentals and other charges provided in this Lease for such calendar month and that actually collected by Landlord for such month. If it is necessary for Landlord to bring suit in order to collect any deficiency, Landlord shall have a right to allow such deficiencies to accumulate and to bring an action on several or all of the accrued deficiencies at one time. Any such suit shall not prejudice in any way the right of Landlord to bring a similar action for any subsequent deficiency or deficiencies.

(d) Landlord may terminate this Lease by written notice to Tenant, in which event Tenant shall immediately surrender the Demised Premises to Landlord, and if Tenant fails to do so, Landlord may, without prejudice to any other remedy which Landlord may have for possession or arrearages in rent (including any late charge or interest which may have accrued pursuant to Section 4.6 of this Lease), enter upon and take possession of the Demised Premises and expel or remove Tenant and any other person who may be occupying said Demised Premises or any part thereof, by force if necessary, without being liable for prosecution or any claim for damages therefor. Tenant hereby waives any statutory requirement of prior written notice for filing eviction or damage suits for nonpayment of rent. In addition, Tenant agrees to pay to Landlord on demand the amount of all loss and damage which Landlord may suffer by reason of any termination effected pursuant to this subsection (c), said loss and damage to be determined by either of the following alternative measures of damages:

(i) Until Landlord is able, through reasonable efforts, the nature of which efforts shall be at the sole discretion of Landlord, to relet the Demised Premises under terms satisfactory to Landlord, in its sole discretion, Tenant shall pay to Landlord on or before the first day of each calendar month, the monthly rentals and other charges provided in this Lease. If and after the Demised Premises have been relet by Landlord, Tenant shall pay to Landlord on the 20th day of each calendar month the difference between the monthly rentals and other charges provided in this Lease for such calendar month and that actually collected by Landlord for such month. If it is necessary for Landlord to bring suit in order to collect any deficiency, Landlord shall have a right to allow such deficiencies to accumulate and to bring an action on several or all of the accrued deficiencies at one time. Any such suit shall not prejudice in any way the right of Landlord to bring a similar action for any subsequent deficiency or deficiencies. Any amount collected by Landlord from subsequent tenants for any calendar month in excess of the monthly rentals and other charges provided in this Lease, shall be credited to Tenant in reduction of Tenant's liability for any calendar month for which the amount collected by Landlord will be less than the monthly rentals and other charges provided in this Lease; but Tenant shall have no right to such excess other than the above-described credit.

(ii) When Landlord desires, Landlord may demand a final settlement. Upon demand for a final settlement, Landlord shall have a right to, and Tenant hereby agrees to pay, the difference between the total of all monthly rentals and other charges provided in this Lease for the remainder of the term and the reasonable rental value of the Demised Premises for such period, such difference to be discounted to present value at a rate equal to the rate of interest which is allowed by law in the State of Texas when the parties to a contract have not agreed on any particular rate of interest (or, in the absence of such law, at the rate of six percent per annum).

If Landlord elects to exercise the remedies prescribed in subsection 22.2(b) or (c) above, this election shall in no way prejudice Landlord's right at any time thereafter to cancel said election in favor of the remedy prescribed in subsection 22.2(d) above, provided that at the time of such cancellation Tenant is still in default. Similarly, if Landlord elects to compute damages in the manner prescribed by subsection 22.2(d)(i) above, this election shall in no way prejudice Landlord's right at any time thereafter to demand a final settlement in accordance with subsection 22.2(d)(ii) above. Pursuit of any of the above remedies shall not preclude pursuit of any other remedies in other sections of this Lease and any other remedies provided by law. Forbearance by Landlord to enforce one or more of the remedies herein provided upon an event of default shall not be deemed or construed to constitute a waiver of such default.

22.3 It is expressly agreed that in determining "the monthly rentals and other charges provided in this Lease," as that term is used throughout subsections 22.2(d)(i) and 22.2(d)(ii) above, there shall be added to the Minimum Guaranteed Rental (as specified in Section 1.1(m) this Lease) a sum equal to the charges for maintenance of the Common Area (as specified in Sections 1.1(o) and 7.4 of this Lease), the payments for taxes, charges and insurance (as specified in Article 6 of this Lease).

22.4 It is further agreed that, in addition to payments required pursuant to subsections 22.2(b) and 22.2(c) above, Tenant shall compensate Landlord for all expenses incurred by Landlord in repossession (including, among other expenses,

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any increase in insurance premiums caused by the vacancy of the Demised Premises), all expenses incurred by Landlord in reletting (including, among other expenses, repairs, remodeling, replacements, advertisements and brokerage fees), all concessions granted to a new tenant upon reletting (including, among other concessions, renewal options), all losses incurred by Landlord as a direct or indirect result of Tenant's default (including, among other losses, any adverse reaction by Landlord's mortgagee or by other tenants or potential tenants of the Office Building) and a reasonable allowance for Landlord's administrative efforts, salaries and overhead attributable directly or indirectly to Tenant's default and Landlord's pursuing the rights and remedies provided herein and under applicable law.

22.5 Landlord may restrain or enjoin any breach or threatened breach of any covenant, duty or obligation of Tenant herein contained without the necessity of proving the inadequacy of any legal remedy or irreparable harm. The remedies of Landlord hereunder shall be deemed cumulative and not exclusive of each other.

22.6 If on account of any breach or default by Tenant in its obligations hereunder, Landlord shall employ an attorney to present, enforce or defend any of Landlord's rights or remedies hereunder, Tenant agrees to pay any reasonable attorney's fees incurred by Landlord in such connection.

22.7 In the event that any one or more provisions of this Article 22 authorizes Landlord to enter the Demised Premises, Landlord is entitled and is hereby authorized, without any notice to Tenant, to enter upon the Demised Premises by use of a duplicate key, a master key, a locksmith's entry procedures or any other means not involving personal confrontation, and to alter or change the door locks on all entry doors of the Demised Premises, thereby permanently excluding Tenant. In such event Landlord shall not be obligated to place any written notice on the Demised Premises explaining Landlord's action; moreover, if a reason for Landlord's action is the failure of Tenant to pay any one or more rentals when due pursuant to this Lease, Landlord shall not be required to provide the new key (if any) to Tenant until and unless all rental defaults of Tenant have been fully cured.

22.8 Tenant acknowledges its obligation to deposit with Landlord the sum stated in Section 1.1(g) above, to be held by Landlord without interest as security for the performance by Tenant of Tenant's covenants and obligations under this Lease. Tenant agrees that such deposit may be co-mingled with Landlord's other funds and is not an advance payment of rental or a measure of Landlord's damages in case of default by Tenant. Upon the occurrence of any event of default by Tenant, Landlord may, from time to time, without prejudice to any other remedy provided herein or provided by law, use such fund to the extent necessary to make good any arrears of rentals and any other damage, injury, expense or liability caused to Landlord by such event of default, and Tenant shall pay to Landlord on demand the amount so applied in order to restore the Security Deposit to its original amount. If Tenant is not then in default hereunder, any remaining balance of such deposit shall be returned by Landlord to Tenant within 30 days following termination of this Lease (subject to the provisions of Section 19.6 above).

22.9 If Landlord expels or removes Tenant and any other person from the Demised Premises without terminating or forfeiting this Lease or accepting surrender of the Demised Premises, Landlord must attempt to mitigate its damages. In any situation in which Landlord is attempting to mitigate its damages, Landlord will conclusively be deemed to have done so if Landlord lists the Demised Premises with a real estate broker or agent (which may be affiliated with Landlord) and considers all written proposals for such space made by such broker or agent; provided, however, that in no event will Landlord (i) be required to give preference to the Demised Premises over other spaces in the Project, (ii) be required to agree to allow an existing tenant of the Project to move from their existing space to all or any of the Demised Premises, or (iii) be required to accept any lease proposal which it, in its sole discretion, deems unacceptable. In attempting to relet or actually reletting the Demised Premises, Landlord will be free to enter into a direct lease with the proposed replacement tenant and will not be acting as Tenant's agent, although the proceeds Landlord actually receives for any time period will be credited against Tenant's obligations for the same time period. Tenant will not be entitled to any additional credit (for example, if Landlord receives amounts during a particular time period in excess of Tenant's obligations for the same time period, Landlord will not be required to credit such excess against Tenant's obligations for any other time period).

22.10 In the event of any default described in subsection (d) of Section 22.1 of this Lease, any assumption and assignment must conform with the requirements of the Bankruptcy Code which provides, in part, that the Landlord must be provided with adequate assurances (i) of the source of rent and other consideration due under this Lease, (ii) that the financial condition and operating performance of any proposed assignee and its guarantors, if any, shall be similar to the financial condition and operating performance of Tenant and its guarantors, if any, as of the date of execution of this Lease, (iii) that any assumption or assignment is subject to all of the provisions of this Lease (including, but not limited to restrictions as to use) and will not breach any such provision contained in any other lease, financing agreement or other agreement relating to the Office Building, and (iv) that any assumption or assignment will not disrupt any tenant mix or balance in the Office Building.

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(a) In order to provide Landlord with the assurances contemplated by the Bankruptcy Code, Tenant must fulfill the following obligations, in addition to any other reasonable obligations that Landlord may require, before any assumption of this Lease is effective: (i) all defaults under subsection (a) of Section 22.1 of this Lease must be cured within ten (10) days after the date of assumption; (ii) all other defaults under Section 22.1 of this Lease other than subsection (d) of Section 22.1 must be cured within fifteen (15) days after the date of assumption; (iii) all actual monetary losses incurred by Landlord (including, but not limited to, reasonable attorneys fees) must be paid to Landlord within ten (10) days after the date of assumption; and (iv) Landlord must receive within ten (10) days after the date of assumption a Security Deposit in the amount of six (6) months minimum guaranteed rent (using the minimum guaranteed rent in effect for the first full month immediately following the assumption) and an advance prepayment of minimum guaranteed rent in the amount of three (3) months minimum guaranteed rent (using the minimum guaranteed rent in effect for the first full month immediately following the assumption), both sums to be held by Landlord in accordance with Section 22.8 above and deemed to be rent under this Lease for the purposes of the Bankruptcy Code as amended and from time to time in effect.

(b) In the event this Lease is assumed in accordance with the requirements of the Bankruptcy Code and this Lease, and is subsequently assigned, then, in addition to any other reasonable obligations that Landlord may require and in order to provide Landlord with the assurances contemplated by the Bankruptcy Code, Landlord shall be provided with (i) a financial statement of the proposed assignee prepared in accordance with generally accepted accounting principles consistently applied, though on a cash basis, which reveals a net worth in an amount sufficient, in Landlord's reasonable judgment, to assure the future performance by the proposed assignee of Tenant's obligations under this Lease; or (ii) a written guaranty by one or more guarantors with financial ability sufficient to assure the future performance of Tenant's obligations under this Lease, such guaranty to be in form and content satisfactory to Landlord and to cover the performance of all of Tenant's obligations under this Lease.

ARTICLE 23

LANDLORD'S CONTRACTUAL SECURITY INTEREST

23.1 In addition to the statutory Landlord's lien, Landlord shall have at all times a valid security interest to secure payment of all rentals and other sums of money becoming due hereunder from Tenant, and to secure payment of any damages or loss which Landlord may suffer by reason of the breach by Tenant of any covenant, agreement or condition contained herein, upon all goods, wares, equipment, fixtures, furniture, improvements and other personal property of Tenant presently, or which may hereafter be, situated on the Demised Premises, and all proceeds therefrom, and such property shall not be removed without the consent of Landlord until all arrearage in rent as well as any and all other sums of money then due to Landlord or to become due to Landlord hereunder shall first have been paid and discharged and all the covenants, agreements and conditions hereof have been fully complied with and performed by Tenant. Upon the occurrence of an event of default by Tenant, Landlord may, in addition to any other remedies provided herein, enter upon the Demised Premises and take possession of any and all goods, wares, equipment, fixtures, furniture, improvements and other personal property of Tenant situated on the Demised Premises, without liability for trespass or conversion, and sell the same at public or private sale, with or without having such property at the sale, after giving Tenant reasonable notice of the time and place of any public sale or of the time after which any private sale is to be made, at which sale the Landlord or its assigns may purchase unless otherwise prohibited by law. Unless otherwise provided by law, and without intending to exclude any other manner of giving Tenant reasonable notice, the requirement of reasonable notice shall be met if such notice is given in the manner prescribed in this Lease at least five (5) days before the time of sale. Any sale made pursuant to the provisions of this paragraph shall be deemed to have been a public sale conducted in a commercially reasonable manner if held in the above-described Demised Premises or where the property is located after the time, place and method of sale and a general description of the types of property to be sold have been advertised in a daily newspaper published in the county in which the property is located, for five (5) consecutive days before the date of the sale. The proceeds from any such disposition, less any and all expenses connected with the taking of possession, holding and selling of the property (including reasonable attorney's fees and legal expenses), shall be applied as a credit against the indebtedness secured by the security interest granted in this paragraph. Any surplus shall be paid to Tenant or as otherwise required by law; the Tenant shall pay any deficiencies forthwith. Tenant hereby agrees that applicable provisions of the Uniform Commercial Code, as adopted by the State of Texas, permit Landlord to file a financing statement without Tenant's signature, that a carbon, photographic or other reproduction of this Lease shall be sufficient to constitute a financing statement, and Tenant hereby consents to such a filing by Landlord. Tenant nevertheless agrees that upon request by Landlord, Tenant agrees that it will execute and deliver to Landlord a financing statement in form sufficient to perfect the security interest of Landlord in the aforementioned property and proceeds thereof under the provision of the Uniform Commercial Code (or corresponding state statute or statutes) in force in the state in which the property is located as well as any other state the laws of which

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Landlord may at any time consider to be applicable; moreover, Landlord is hereby irrevocably vested with a power of attorney from Tenant to execute any and all such financing statements on behalf of Tenant.

23.2 Notwithstanding Section 23.1, Landlord agrees that it will subordinate its security interest and Landlord's lien to the security interest of Tenant's supplier or institutional financial source with respect to the "Applicable FF&E" (as herein defined) only, and only for as long as the rental account of Tenant under this Lease is current (or is brought current within ninety (90) days of delinquency). As used herein, the term "Applicable FF&E" shall mean Tenant's FF&E other than permanent items such as HVAC systems, vent-hoods, built-ins, stainless items, coolers, flooring, wall coverings, light fixtures, bathroom fixtures, bars, counters, countertops, and other such permanent or affixed items.

ARTICLE 24

HOLDING OVER; SURRENDER OF DEMISED PREMISES

24.1 In the event Tenant remains in possession of the Demised Premises after the expiration of this Lease and without the execution of a new lease, (i) it shall be deemed to be occupying said Demised Premises as a tenant at sufferance at a daily rental equal to the rental herein provided plus seventy-five percent (75%) of such amount otherwise subject to all the conditions, provisions and obligations of this Lease insofar as the same are applicable to a tenancy at sufferance, and (ii) Tenant shall indemnify, defend and hold safe and harmless the Landlord, Landlord's agents and employees from any loss, liability, claims, suits, costs, expenses, including without limitation attorney's fees and damages, both real and alleged, arising out of any such delay by Tenant in so surrendering the Demised Premises.

24.2 At the end of the term or the termination of Tenant's right to possess the Demised Premises, Tenant must (1) deliver to Landlord the Demised Premises with all improvements located thereon in good repair and condition, reasonable wear and tear (subject however to Tenant's maintenance obligations) excepted, (2) deliver to Landlord all keys to the Demised Premises, and (3) remove all signage placed on the Demised Premises. All fixtures, alterations, additions, and improvements (whether temporary or permanent) are Landlord's property and must remain on the Demised Premises except as provided in the next two sentences. Provided that Tenant has performed all of its obligations hereunder, Tenant may remove all unattached trade fixtures, furniture, and personal property placed in the Demised Premises by Tenant (but Tenant cannot remove any such item which was paid for, in whole or in part, by Landlord). Additionally, Tenant must remove such alterations, additions, improvements, fixtures, equipment, wiring, furniture, and other property as Landlord may request, provided such request is made within six months after the end of the term. All items not so removed will, at the option of Landlord, be deemed abandoned by Tenant and may be appropriated, sold, stored, destroyed, or otherwise disposed of by Landlord without notice to Tenant and without any obligation to account for such items, and Tenant must pay for the costs incurred by Landlord in connection therewith. Any such disposition cannot be considered a strict foreclosure or other exercise of Landlord's rights in respect of the security interest granted under Section 23. All work required of Tenant under this Section 24.2 must be coordinated with Landlord and be done in a good and workmanlike manner, in accordance with all laws, and so as not to damage the Demised Premises or the Office Building. Tenant must, at its expense, promptly repair all damage caused by any work performed by Tenant under this Section 24.2.

ARTICLE 25

NOTICES

25.1 Wherever any notice is required or permitted hereunder, such notice shall be in writing. Any notice or document required or permitted to be delivered hereunder shall be deemed to be delivered when actually received by the designated addressee or, if earlier and regardless of whether actually received or not, when deposited in the United States mail, postage prepaid, certified mail, return receipt requested, addressed to the parties hereto at the respective addresses set out in Section 1.1 above (or at Landlord's option, to Tenant at the Demised Premises), or at such other addresses as they have theretofore specified by written notice.

25.2 If and when included within the term "Landlord" as used in this instrument there are more than one person, firm or corporation, all shall jointly arrange among themselves for their joint execution of such notice specifying some individual at some specific address for the receipt of notices and payments to the Landlord; if and when included within the term "Tenant" as used in this instrument there are more than one person, firm or corporation, all shall jointly arrange among themselves for their joint execution of such a notice specifying some individual at some specific address for the receipt of notices and payment to Tenant. All parties included within the terms "Landlord" and "Tenant," respectively, shall be bound by notices and payments given in accordance with the provisions of this Article to the same effect as if each had received such notice or payment. In addition, Tenant agrees that notices to Tenant may be given by Landlord's attorney, property manager or other agent.

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ARTICLE 26

COMMISSIONS; ADVICE FROM AGENT

ARTICLE 27

REGULATIONS

27.1 Tenant represents and warrants to Landlord that it is not, and shall not become during the Lease Term, a person or entity with whom Landlord is restricted from doing business under applicable laws relating to national security (such as the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, commonly known as the "USA Patriot Act") and executive orders and regulations relating to such applicable laws. Tenant agrees to take all reasonable measures throughout the Lease Term to assure the continued validity of its representation and warranty in this Section 27.1; moreover, Tenant will provide further assurances and information to Landlord if and to the extent required by such applicable laws.

27.2 Landlord and Tenant acknowledge that there are in effect federal, state, county and municipal laws, orders, rules, directives and regulations (collectively referred to herein as the "Regulations") and that additional Regulations may hereafter be enacted or go into effect, relating to or affecting the Demised Premises or the Office Building, and concerning the impact on the environment of construction, land use, maintenance and operation of structures, toxic or otherwise hazardous substances, and conduct of business. Subject to the express rights granted to Tenant under the terms of this Lease, Tenant will not cause or permit to be caused, any act or practice, by negligence, omission or otherwise, that would adversely affect the environment, or do anything or permit anything to be done that would violate any of said laws, regulations or guidelines. Moreover, Tenant shall have no claim against Landlord by reason of any changes Landlord may make in the Office Building or the Demised Premises pursuant to said Regulations or any charges imposed upon Tenant, Tenant's customers or other invitees pursuant to same.

27.3 If, by reason of any Regulations, the payment to, or collection by, Landlord of any rental or other charge (collectively referred to hereinafter as "Lease Payments") payable by Tenant to Landlord pursuant to the provisions of this Lease is in excess of the amount (the "Maximum Charge") permitted thereof by the Regulations, then Tenant, during the period (the "Freeze Period") when the Regulations shall be in force and effect shall not be required to pay, nor shall Landlord be permitted to collect, any sum in excess of the Maximum Charge. Upon the earlier of (i) the expiration of the Freeze Period, or (ii) the issuance of a final order or judgment of a court of competent jurisdiction declaring the Regulations to be invalid or not applicable to the provisions of this Lease, Tenant, to the extent not then proscribed by law, and commencing with the first day of the month immediately following, shall pay to Landlord as additional rental, in equal monthly installments during the balance of the term of this Lease, a sum equal to the cumulative difference between the Maximum Charges and the Lease Payments during the Freeze Period. If any provisions of this section, or the application thereof, shall to any extent be declared to be invalid and unenforceable, the same shall not be deemed to affect any of the other provisions of this section or of this Lease, all of which shall be deemed valid and enforceable to the fullest extent permitted by law.

ARTICLE 28

MISCELLANEOUS

28.1 Nothing in this Lease shall be deemed or construed by the parties hereto, nor by any third party, as creating the relationship of principal and agent or of partnership or of joint venture between the parties hereto, it being understood and agreed that neither the method of computation of rent, nor any other provision contained herein, nor any acts of the parties hereto, shall be deemed to create any relationship between the parties hereto other than the relationship of landlord and tenant.

28.2 Tenant shall not for any reason withhold or reduce Tenant's required payments of rentals and other charges provided in this Lease, it being agreed that the obligations of Landlord under this Lease are independent of Tenant's obligations except as may be otherwise expressly provided. The immediately preceding sentence shall not be deemed to deny Tenant the ability of pursuing all rights granted it under this Lease or at law; however, at the direction of Landlord, Tenant's claims in this regard shall be litigated in proceedings different from any litigation involving rental claims or other claims by Landlord against Tenant (i.e., each party may proceed to a separate judgment without consideration, counterclaim or offset as to the claims asserted by the other party).

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28.3 In any action brought by Tenant against Landlord or against Landlord's agents, employees, partners, principals, joint ventures or related entities, as the case may be, Tenant shall look only to Landlord's interest in the Office Building for satisfaction of Tenant's remedies or for the collection of a judgment or other judicial process requiring the payment of money by Landlord, whether resulting from the default of Landlord hereunder or otherwise, and no other property or assets of Landlord or Landlord's agents, employees, partners, principals, joint ventures or related entities shall be subject to levy, execution or other enforcement procedure for the satisfaction of Tenant's remedies under this Lease or the relationship of Landlord and Tenant. In the event of the transfer and assignment by Landlord or Landlord's interest in the Lease, Landlord shall thereby be released from any further obligations hereunder and Tenant agrees to look solely to such successor in interest of Landlord for the performance of Landlord's obligations hereunder.

28.4 In all circumstances under this Lease where the prior consent of one party (the "consenting party"), whether it be Landlord or Tenant, is required before the other party (the "requesting party") is authorized to take any particular type of action, such consent shall not be withheld in a wholly unreasonable and arbitrary manner; however, the requesting party agrees that its exclusive remedy if it believes that consent has been withheld improperly (including, but not limited to, consent required from Landlord pursuant to Section 9.2 or Section 19.1) shall be to institute litigation either for a declaratory judgment or for a mandatory injunction requiring that such consent be given (with the requesting party hereby waiving any claim for damages, attorneys fees or any other remedy unless the consenting party refuses to comply with a court order or judgment requiring it to grant its consent).

28.5 One or more waivers of any covenant, term or condition of this Lease by either party shall not be construed as a waiver of a subsequent breach of the same covenant, term or condition. The consent or approval by either party to or of any act by the other party requiring such consent or approval shall not be deemed to waive or render unnecessary consent to or approval of any subsequent similar act.

28.6 Whenever a period of time is herein prescribed for action to be taken by Landlord, Landlord shall not be liable or responsible for, and there shall be excluded from the computation of any such period of time, any delays due to strikes, riots, acts of God, shortages of labor or materials, war, governmental laws, regulations or restrictions or any other causes of any kind whatsoever which are beyond the reasonable control of Landlord.

28.7 Intentionally omitted.

28.8 If any provision of this Lease should be held to be invalid or unenforceable, the validity and enforceability of the remaining provisions of this Lease shall not be affected thereby.

28.9 If this Lease is in fact a sublease, Tenant accepts this Lease subject to all of the terms and conditions of the underlying lease under which Landlord holds the Office Building as lessee. Tenant covenants that it will do no act or thing which would constitute a violation by Landlord of his obligation under such underlying lease; provided, however, that Tenant's agreement in this regard is premised on Landlord's assurances to the effect that the terms of this Lease do not violate such underlying lease.

28.10 The laws of the State of Texas shall govern the interpretation, validity, performance and enforcement of this Lease. Venue for any action under this Lease shall be the county in which rentals are due pursuant to Section 4.1 and Section 1.1 of this Lease.

28.11 The captions used herein are for convenience only and do not limit or amplify the provisions hereof.

28.12 Whenever herein the singular number is used, the same shall include the plural, and words of any gender shall include each other gender.

28.13 The terms, provisions and covenants contained in this Lease shall apply to, inure to the benefit of and be binding upon the parties hereto and their respective heirs, successors in interest and legal representatives except as otherwise herein expressly provided.

28.14 This lease contains the entire agreement between the parties, and no rights are created in favor of either party other than as specified or expressly contemplated in this Lease. No brochure, rendering information or correspondence shall be deemed to be a part of this agreement unless specifically incorporated herein by reference. In addition, no agreement shall be effective to change, modify or terminate this Lease in whole or in part unless such is in writing and duly signed by the party against whom enforcement of such change, modification or termination is sought.

Landlord's Initial AN

Tenant's Initial ll

28.15 LANDLORD AND TENANT HEREBY ACKNOWLEDGE THAT THEY ARE NOT RELYING UPON ANY BROCHURE, RENDERING, INFORMATION, REPRESENTATION OR PROMISE OF THE OTHER, OR OF THE AGENT OR COOPERATING AGENT, EXCEPT AS MAY BE EXPRESSLY SET FORTH

☒ **IN THIS LEASE.**

☐ **IN _____ AS WELL AS IN THIS LEASE.**

Note: If no "X" (or other mark designating a choice) is placed in either box in this Section 28.15, then the first box will be deemed to have been marked.

28.16 TENANT IS HEREBY ADVISED THAT THE ENTITY COMPRISING LANDLORD INCLUDES NATIONAL PRIME COMMERCIAL, LLC AND/OR THEIR RESPECTIVE OFFICERS (WHICH MAY INCLUDE THE SALESPERSON OR SALESPERSONS SIGNING FOR NATAIONAL PRIME COMMERCIAL, LLC, AND UNLESS TENANT HAS A WRITTEN AGREEMENT TO THE CONTRARY FROM NATIONAL PRIME COMERCILA, LLC, AS THE CASE MAY BE, NATIONAL PRIME COMMERCIAL, LLC REPRESENTING LANDLORD IN THIS TRANSACTION AND THEREFORE HAVE NO FIDUCIARY DUTIES TO TENANT.

28.17 Tenant agrees that Tenant will not record this Lease in the real property records of the county wherein the Demised Premises are located without first securing the prior written consent of Landlord, which may be withheld at Landlord's sole discretion. However, Tenant agrees upon the written request of Landlord to execute, acknowledge and deliver to Landlord a short form lease in recordable form.

28.18 Tenant's intended use of the Demised Premises includes a common area to the general public. Tenant represents and warrants that it will take all measures necessary to insure that the Demised Premises, and the access thereto, is currently and will continue to be in compliance with the Reasonable Accommodation Provisions of the Americans with Disability Act of 1990, as amended, concerning public accommodations.

28.19 Intentionally omitted.

28.20 Intentionally omitted.

28.21 It is hereby understood by Tenant that this Lease is subject to Landlord's construction financing mortgagee's approval and that in the event such mortgagee requires any changes or alterations to this Lease (after execution by both Landlord and Tenant), Tenant will agree to said changes and will acknowledge its agreement to said changes in writing to Landlord and Landlord's mortgagee. In the event that Tenant refuses to agree to said changes required by such mortgagee, then Landlord shall have the right, in its sole and absolute discretion to terminate this Lease without liability or obligation to Tenant.

28.22 This lease consists of twenty-eight articles and Exhibits "A" through "K". With the exception of Article 7, in the event any provision of an exhibit or other attached page shall be inconsistent with a provision in the body of the Lease, the provision as set forth in the exhibit shall be deemed to control.

28.23 Intentionally omitted.

28.24 Landlord and Tenant agree that each provision of this Lease for determining charges, amounts and other additional rent payable by Tenant is commercially reasonable and, as to each such charge or amount, constitutes a "method by which the charge is to be computed" for purposes of Section 93.012 of the Texas Property Code, which Section was originally enacted by House Bill 2186, 77th Legislature. **ACCORDINGLY, TENANT VOLUNTARILY AND KNOWINGLY WAIVES ALL RIGHTS AND BENEFITS, IF ANY, AVAILABLE TO TENANT UNDER SECTION 93.012 OF THE TEXAS PROPERTY CODE, AS SUCH SECTION NOW EXISTS OR AS IT MAY BE HEREAFTER AMENDED, SUCCEEDED AND/OR RENUMBERED.**

Landlord's Initial MM

Tenant's Initial ll

Executed as of the latest date accompanying a signature by Landlord or Tenant below.

LANDLORD:

NATIONAL PRIME COMMERCIAL, LLC
a Texas limited Liability Company,

By: National Prime Commercial, LLC,
a Texas limited liability company,
Matt Nemati

By: _____
Name: Matt Nemati
Title: President

Date of Signature: 10/1/2025, 2025

ATTEST or WITNESS

TENANT:

TD industries

By: *Aaron Rice*

Name: Aaron Rice
Title: Vice president

Date of Signature: 9/30/2025, 2025

ATTEST or WITNESS

STATE OF TEXAS §
 §
COUNTY OF _____ §

On the ____ day of _____, 2025, before me, the undersigned Notary Public, personally appeared _____, known to me to be the individual whose name is subscribed to the within instrument, and acknowledged to me that she executed the same in the capacity and for the purpose stated.

My Commission Expires: _____, 2025 _____
Notary Public, State of Texas

Landlord's Initial *MM*

Tenant's Initial *AR*

EXHIBIT "A"

LEGAL DESCRIPTION

6341 Campus Circle Drive East, Suite 150 Irving Texas 75063

EXHIBIT "B"

SITE PLAN

THIS EXHIBIT IS ATTACHED SOLELY FOR THE PURPOSE OF LOCATING THE SHOPPING CENTER AND THE DEMISED PREMISES WITHIN THE SHOPPING CENTER AND NO REPRESENTATION, WARRANTY, OR COVENANT IS TO BE IMPLIED BY ANY OTHER INFORMATION SHOWN ON THE EXHIBIT (I.E., ANY INFORMATION AS TO BUILDINGS, TENANTS OR PROSPECTIVE TENANTS, SQUARE FOOTAGES, ETC.), WHICH IS SUBJECT TO CHANGE AT ANY TIME.

Landlord's Initial MM
Tenant's Initial ll

EXHIBIT "C"

SIGN CRITERIA

Landlord's Initial MM
Tenant's Initial ll

EXHIBIT "D"

CONSTRUCTION: TENANT ACCEPTANCE OF SPACE "AS-IS"
ARTICLE I
TENANT'S OBLIGATIONS

Tenant hereby accepts the Demised Premises "AS-IS" and "turned over to Tenant for finish –out". Prior to the commencement of any construction, Tenant shall adhere to the following:

A: PRE-CONSTRUCTION OBLIGATIONS

- 1) Plans, diagrams, schedules and other data relating to work to be performed by Tenant must be furnished by Tenant to Landlord complete, sufficient to comply with all applicable laws and to obtain a building permit, and ready for Landlord's consideration and final approval within fifteen (15) days after execution of this lease (or at such other time as may be specified in this exhibit). Without limiting the generality of the immediately preceding sentence, Tenant's submissions must (a) comply with the requirements of any interior design specifications which may be attached hereto as Exhibit D-1 and (b) include a site plan, a floor plan, a reflected ceiling plan, a plumbing, electrical and HVAC design plan, elevations of walls and a fixture plan. All drawings shall be at scale of either 1/8" or 1/4".
- 2) Tenant shall secure Landlord's written approval of all designs, plans, specifications, materials, and contractors for work to be performed by Tenant before beginning the work (including following whatever "work letter" instructions, if any, which Landlord may deliver to Tenant in connection with the work), and shall secure all necessary licenses and permits to be used in performing the work. Tenant's finished work shall be in accordance with all such approved items, as well as any other specifications provided by Landlord, and shall be subject to Landlord's approval and acceptance.
- 3) The insurance requirements in the lease and the indemnity requirements in the lease apply during the construction contemplated in this exhibit, and Tenant must provide evidence of appropriate insurance coverage prior to beginning any of Tenant's Work. This insurance is in addition to the insurance to be provided by Tenant's contractor. In addition, and without limiting the generality of the immediately preceding sentence, at Landlord's option, Landlord may require that prior to beginning any of Tenant's Work, Tenant must provide Landlord with evidence of insurance covering both Tenant and Tenant's contractor against damage to their personal property, as well as against third-party liability and worker's compensation claims arising out of all construction and associated activities as stated below:
 - a. Worker's Compensation at statutory limits, as required by the state where work is being performed and Employer's Liability with the limits no less than One Million Dollars (\$1,000,000.00) each accident or occupational disease.
 - b. Commercial General Liability, including Demised Premises Operations, Products, and Completed Operations Liability, Independent Contractors Liability, Contractual Liability and Broad Form Property Damage Liability with limits no less than:

Bodily Injury and Property Damage -- Two Million Dollars (\$2,000,000.00) each occurrence/aggregate

Personal Injury Liability -- Two Million Dollars (\$2,000,000.00) each occurrence/aggregate.

Such liability insurance shall provide coverage for explosion, collapse, and underground exposures, if applicable, and contractual liability coverage, shall insure Tenant's contractors and any subcontractors against any and all claims for personal injury, including death resulting there from, and damage to property of others arising from operations under contracts whether such operations are performed by Tenant's contractors or by any subcontractor for whose acts any of them may be liable and shall include the condition that it is primary

Landlord's Initial MM
Tenant's Initial ll

and that any liability insurance maintained by Landlord or any other additional insured is excess and noncontributory.

c. Comprehensive Automobile Liability Insurance, including the ownership, maintenance, and operation of any automobile equipment owned, hired, and non-owned, including the loading and unloading thereof in the following minimum amounts:

Bodily Injury and Property Damage Liability -- Two Million Dollars (\$2,000,000.00) each accident

d. Umbrella Liability Insurance covering all operations of contractor with limits no less than:

Bodily Injury and Property Damage -- Two Million Dollars (\$2,000,000.00) each occurrence/aggregate

e. Builder's Risk Completed Value Form covering All Risks of Physical Loss or Damage on Tenant's Work in the Demised Premises as it relates to the building in which the Demised Premises are located, naming the interests of Landlord and its agents and employees and Tenant's contracts, as their respective interest may appear.

All policies of insurance are subject to Landlord's prior approval and special conditions, including the following:

1. Each policy must be endorsed to provide that the carrier waives its right of subrogation against Landlord, and any mortgagee of Landlord. During Landlord's construction activities, each such policy shall in addition be endorsed to provide that the carrier waives its right of subrogation against Landlord's contractor and its affiliated companies.

2. Each policy (except Workers Compensation Insurance) must be endorsed to, and any mortgagee of Landlord as additional insured and to ensure that the policy is primary over any other applicable insurance. During Landlord's construction activities, each such policy must also be endorsed to name Landlord's contractor and its affiliated companies.

B. DESCRIPTION OF TENANT'S WORK:

- 1) All work undertaken by Tenant (i) shall be at Tenant's expense, (ii) shall not damage the building or any other part thereof, and (iii) shall be completed in a manner which does not disturb other tenants in the Office Building. Any roof penetration shall be performed by Landlord's roofer, or at Landlord's option, by a bonded roofer approved in advance by Landlord, the work shall be begun only after Landlord has given consent, which consent shall in part be conditioned upon Tenant's plans to include materials acceptable to Landlord in order to prevent injury to the roof and to spread the weight of the equipment being installed. Tenant shall also be responsible for obtaining, and paying for, professional inspections of any structural work (including, without limitation, any roof work or concrete work).
- 2) Upon completion of Tenant's Work, Tenant shall (i) notify Landlord that the work is complete and ready for Landlord's review, (ii) deliver to Landlord a true copy of Tenant's certificate of occupancy (or similar governmental permit), (iii) deliver to Landlord all insurance documentation prescribed in Article 15 of this Lease, and (iv) provide documentation acceptable to Landlord that all bills have been paid to Tenant's contractors, subcontractors, and professionals.

Landlord's Initial MM

Tenant's Initial ll

EXHIBIT "E"

RULES AND REGULATIONS

The Tenant agrees to abide by the following rules and regulations:

1. The sidewalks, roadways, and other public portions in the Office Building shall be used by the Tenant for the purpose solely of ingress and egress to and from the premises so demised to the Tenant. Tenant and its employees and representatives shall not park directly in front of any of the leasable areas in the Office Building, including their own leased premises. Landlord has the right to make changes in the parking procedures and guidelines from time to time, to benefit the Office Building, in its sole option.
2. All waste paper, refuse, and garbage shall be deposited by Tenant only in those containers provided by Tenant or if applicable by Landlord, to be located in areas designated by Landlord.
3. The Tenant shall keep the exterior and interior portions of the leased premises, to include all windows, doors, and all other glass, plate fixtures, and trim in a clean condition. The Tenant shall keep the display windows in the leased premises in a neat and professional arrangement. No signs or other materials are to be placed directly on the display windows, to include any type of security system or protective bars, without the approval of the Landlord. No improvements, additions, or materials of any kind are permitted to be placed on the outside of any of the leased premises by Tenant.
4. The Tenant shall not keep or permit to be kept on the premises any flammable or combustible fluid, chemical, or explosive material of any kind.
5. The Tenant shall not hold any auction, fire, or bankruptcy sale in the premises demised.
6. The Tenant shall conduct their business in an orderly manner in the best interests of the Office Building. The Tenant shall not permit noises from the use of any radios, televisions, loudspeakers, talking machines, phonographs, or other instruments to reach outside the premises, which will, in the judgment of the Landlord, interfere in any way with other Tenants in the Office Building.
7. The Tenant shall not burn any trash or garbage of any kind in or about the leased premises, or on the grounds of the Office Building.
8. The plumbing facilities shall be used for the purpose of which they have been construed, and no foreign substance of any kind shall be thrown therein. The expense of any breakage, stoppage, or damage resulting from a violation of this provision caused by any Tenant, its employees, agents, or invitees shall be borne by such Tenant.
9. The Landlord reserves the right to amend, rescind, or waive any of the rules and regulations listed above, and further to make such other reasonable rules and regulations as may from time to time seem necessary or desirable for the best interests of the Landlord and of the Tenant. Any such other and further rules and regulations shall be binding upon the Tenant with the same force and effect as if they had been set forth herein at the time of the execution of the within lease agreement.
10. The Landlord reserves further the right to control and operate the public portions of the Office Building in such manner as the Landlord deems necessary or desirable for the best interests of the Office Building and of the Tenants, and for the protection of the buildings and other property in the Office Building. The Landlord, however, shall not be liable to any Tenant for any damages arising out of such control and operation.

Landlord's Initial MN
Tenant's Initial IL

EXHIBIT "F"

RENEWAL OPTION

Tenant (but not any assignee or subtenant) is granted the option(s) to extend the term of this Lease for one (1) term of one (1) year, provided (a) Tenant is not in default at the time of exercise of the option, and (b) Tenant gives written notice of its exercise of the option at least one hundred twenty (120) days prior to the expiration of the Lease Term. The extension term shall be upon the same terms, conditions and rentals, except (i) Tenant shall have no further right of renewal after the renewal terms prescribed above, and (ii) the monthly Minimum Guaranteed Rental during the extension (herein called the "Adjusted Rental") shall be subject to upward adjustment at the end of the Lease Term (which adjustment shall apply to the succeeding Lease Term), determined as follows:

- A. The Adjusted Rental for the renewal term shall be based on the then prevailing rental rates for properties of equivalent quality, size, utility and location, with the length of the Lease Term, and credit standing of the Tenant herein, to be taken into account.
- B. Upon notification from Tenant of the exercise of this renewal option, Landlord shall notify Tenant in writing of the proposed rental for the renewal term Based on Fair Market Value according to paragraph A above. Tenant shall within 15 days following receipt of same notify Landlord in writing of the acceptance or rejection of the proposed rental. The failure of Tenant to respond within said 15 day period shall be deemed to constitute Tenant's acceptance of the proposed rental.
- C. In no event will the Adjusted Rental for any extension be lower than 130% of the highest Minimum Guaranteed Rental charges during the immediately preceding Lease Term, or extension, as the case may be.
- D. Landlord reserve the right to not extend this lease for any reason by giving written notice to tenant at the end of the any Lease Term.

Landlord's Initial MM
Tenant's Initial ll

EXHIBIT "G "

GUARANTY OF LEASE

THIS GUARANTY is executed by TDIndustries (collectively, "Guarantor"), jointly and severally, to National Prime Commercial, LLC ("LANDLORD"). and constitute the basis for this Guaranty of Lease (herein referred to as the "Guaranty"):

WHEREAS, a certain Office Building/Retail Lease Agreement dated June 9/30/2025, 2025 (herein referred to as the "Lease") has been executed by and between National Prime Commercial, LLC as Landlord (herein referred to as "Landlord"), and TD industries, Aaron Rice, as Tenant (herein referred to as "Tenant"), covering certain Premises located at 6341 Campus Circle, in the city of Irving, Dallas County Texas, as more particularly described in the Lease;

WHEREAS, as a condition to Landlord's entering into the Lease, Landlord requires the undersigned to guarantee the full performance of all of the obligations of Tenant accruing under the Lease;

WHEREAS, the TDindustries desires to induce Landlord to enter into the Lease with Tenant;

NOW, THEREFORE, in consideration of the execution of the Lease by Landlord, and other good and valuable consideration, the receipt of which is hereby acknowledged, the TDindustries hereby agrees that:

1. The TDindustries unconditionally, absolutely and to the same extent as if the TDindustries had signed the Lease as tenant, assumes all liabilities, obligations and duties of Tenant accruing under the Lease, and guarantees to Landlord and Landlord's successors and assigns the full, prompt and complete performance of each and all of the terms, covenants, conditions and provisions of the Lease to be kept and performed by Tenant or Tenant's successors or assigns, including the payment of all rental and other charges to accrue thereunder and all damages that may arise as a consequence of the nonperformance thereof.

2. The liability of the TDindustries under this Guaranty shall be unconditional and primary, and in relation to any right of action which shall accrue to Landlord under the Lease, Landlord may, at its option, proceed from time to time solely against the TDindustries and any other person or entity without regard to Tenant's ability to perform and without first commencing any action, exhausting any remedy, obtaining any judgment or proceeding in any way against Tenant or any other person or entity; and suit may be brought and maintained against the undersigned by Landlord to enforce any liability, duty or obligation guaranteed hereby without joinder of Tenant or any other person or entity.

3. This Guaranty shall continue for thirty six (36) months from the final execution of this lease. In the event of Default, the thirty six (36) month Guaranty time period will start over from date of the Default and remain in full effect. This Lease and any renewals or extensions thereof and thereafter until Tenant and Tenant's successors or assigns have fully discharged all of their obligations under the Lease.

4. Until all the covenants and conditions in the Lease to be performed and observed by; Tenant or Tenant's successors or assigns are fully performed and observed, the TDindustries: (a) shall have no right of subrogation or any other right to enforce any remedy against Tenant or Tenant's successors or assigns by reason of any payment or performance thereunder by the TDindustries, and (b) subordinates any liability or indebtedness of Tenant or Tenant's successors or assigns now or hereafter held by the TDindustries to all obligations of Tenant or Tenant's successors or assigns to Landlord under the Lease.

5. The TDindustries agrees that the TDindustries's obligations under the terms of this Guaranty shall not be released, diminished, impaired, reduced or affected by any limitation of liability or recourse under the Lease or by the occurrence of any one or more of the following events: (a) the taking or accepting of any other security or guaranty in connection with the Lease; (b) any release, surrender, exchange, subordination, or loss of any security at any time existing or purported or believed to exist in connection with the Lease; (c) the death, insolvency, bankruptcy, disability, dissolution, termination, receivership, reorganization or lack of corporate, partnership or other power of Tenant, the TDindustries, or any party at any time liable for payment or performance pursuant to the Lease, whether now existing or hereafter occurring; (d) any assignment or subletting by Tenant or Tenant's successors or assigns whether or not permitted pursuant to the terms of the Lease or otherwise approved by Landlord; (e) amendment of the Lease or any renewal, extension, modification or rearrangement of the terms of payment or performance pursuant to the Lease either with or without notice to or consent of the TDindustries, or any adjustment, indulgence, forbearance, or compromise that may be granted or given by Landlord to Tenant, the TDindustries or any other party at any time liable

Landlord's Initial MN
Tenant's Initial A

for payment or performance pursuant to the Lease; (f) any neglect, delay, omission, failure, or refusal of Landlord to take or prosecute any action for the collection or enforcement of the Lease or to foreclose or take or prosecute any action in connection with the Lease; (g) any failure of Landlord to notify the TDIndustries of any renewal, extension, rearrangement, modification, assignment of the Lease or subletting of the Premises or any part thereof, or of the release of or change in any security or of any other action taken or refrained from being taken by Landlord against Tenant or of any new agreement between Landlord and Tenant, it being understood that Landlord shall not be required to give the TDIndustries any notice of any kind under any circumstances with respect to or in connection with the Lease; (h) the unenforceability of all or any part of the Lease against Tenant, it being agreed that the TDIndustries shall remain liable hereon regardless of whether Tenant or any other person be found not liable on the Lease, or any part thereof, for any reason; or (I) any payment by Tenant to Landlord being held to constitute a preference under the bankruptcy laws or for any other reason Landlord being required to refund such payment or pay the amount thereof to someone else.

6. In the event suit or action is brought upon or in connection with the enforcement of this Guaranty, the TDIndustries shall pay reasonable attorneys' fees and all other expenses and court costs incurred by Landlord in connection therewith.

7. This Guaranty shall be binding upon the heirs, legal representatives, successors and assigns of the TDIndustries and shall inure to the benefit of the heirs, legal representatives, successors and assigns of Landlord.

8. The TDIndustries represents that (the TDIndustries is the owner of a direct or indirect interest in Tenant and that) the TDIndustries will receive a direct or indirect benefit from the Lease.

IN WITNESS WHEREOF, the TDIndustries has executed this Guaranty as of the 9/30/2025 day of June, 2024, to be effective the same day as the effective date of the Lease.

GUARANTOR:

By: Aaron Rice

Aaron Rice

Driver's License No: TX ???? 18655119
DOB: ???? 08/13/1974
Telephone No.: ???? 817-889-0959

STATE OF TEXAS
COUNTY OF _____

On the ____ day of _____, 2025, before me, the undersigned Notary Public, personally appeared, Aaron Rice, known to me to be the individual whose name is subscribed to the within instrument, and acknowledged to me that he executed the same in the capacity stated and for the purpose stated.

Notary Public, State of Texas

My Commission Expires: _____

Landlord's Initial MN
Tenant's Initial A

EXHIBIT "H"

CONFIDENTIALITY CLAUSE

Tenant agrees that the terms of this Lease, and all discussions concerning this Lease which preceded execution, including any modifications thereto, shall be kept in strict confidence by the Tenant, as well as Tenant's agents, representatives and attorneys, and shall not be disclosed or disseminated to any person or entity except as required by order of a court of competent jurisdiction or as otherwise required by law.

Landlord's Initial MN
Tenant's Initial /

EXHIBIT "I"

MINIMUM GUARANTEED RENTAL SCHEDULE

<u>Months</u>	Monthly Minimum Guaranteed Rent (<u>Monthly Base Rental</u>)	Annual Minimum Guaranteed Rent (<u>Annual Base Rental</u>)
01 through 12, inclusive	\$7,700.00 per month	\$92,400.00 per year

Tenant to pay throughout the Lease term Tenant's pro rata share of Common Area Maintenance Charges, Taxes and Insurance as indicated, but not limited to, in Article 1, 1.2 and elsewhere in this Lease.

Tenant to pay for any and all utilities that service the Demised Premises.

Landlord's Initial MN
Tenant's Initial ll

EXHIBIT "J"

RELINQUISHMENT OF LIEN RIGHTS

STATE OF TEXAS §
 §
COUNTY OF §

The undersigned, by written agreement dated _____, (the "Agreement") has contracted with _____ ("Tenant") to furnish certain labor and materials (the "Work") on the Tenant's leasehold estate in certain improvements located on the real property described on Exhibit "A" hereto (the "Property"), which is owned by _____ ("Landlord").

The undersigned, in performing such Work, acknowledges that it has entered into a contract with Tenant for the performance thereof and that any lien rights it may have arising out of performing such work, including, but not limited to, mechanics' and materialmens' liens, whether arising under statutory or constitutional law, shall attach to and affect only the Tenant's leasehold estate, and in no event shall the undersigned have any such lien rights in, to or with respect to, the fee title to the Property.

This Relinquishment of Lien is entered into for good and valuable consideration, including the Landlord's agreement to provide certain inducements to the Tenant with respect to performance of the Work.

Executed as of _____, 20____.

By: _____
Name: _____
Title: _____

STATE OF TEXAS §
 §
COUNTY OF §

This instrument was acknowledged before me on the day of _____, 2025,
by for work performed at 6341 Campus Circle Drive East, Irving Texas 75063

My Commission Expires: _____

Notary Public, State of Texas

Landlord's Initial MN
Tenant's Initial ll

Certificate Of Completion

Envelope Id: FA1139BC-5253-444D-895F-55642CA487F8		Status: Completed
Subject: Complete with Docusign: TD LEASE #150.pdf		
Source Envelope:		
Document Pages: 38	Signatures: 3	Envelope Originator:
Certificate Pages: 5	Initials: 70	Andrea Miille
AutoNav: Enabled		13850 Diplomat Dr
Envelopeld Stamping: Enabled		Dallas, TX 75234-8812
Time Zone: (UTC-05:00) Eastern Time (US & Canada)		andrea.miille@tdindustries.com
		IP Address: 72.181.3.64

Record Tracking

Status: Original	Holder: Andrea Miille	Location: DocuSign
9/30/2025 4:20:03 PM	andrea.miille@tdindustries.com	

Signer Events

Signature	Timestamp
Aaron Rice aaron.rice@tdindustries.com Vice President TDIndustries Security Level: Email, Account Authentication (None)	Sent: 9/30/2025 4:48:18 PM Viewed: 9/30/2025 5:00:17 PM Signed: 9/30/2025 5:18:32 PM
Signature Adoption: Pre-selected Style Using IP Address: 2a02:26f7:d15e:8873:0:a000:0:6 Signed using mobile	

Electronic Record and Signature Disclosure:
Not Offered via Docusign

Matt Nemati matt.nemati@gmail.com Security Level: Email, Account Authentication (None)	Matt Nemati Signature Adoption: Pre-selected Style Using IP Address: 2603:8080:2d00:1bb1:4062:42ea:710b:fdb8	Sent: 9/30/2025 5:18:34 PM Viewed: 9/30/2025 6:25:18 PM Signed: 10/1/2025 11:14:27 AM
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Electronic Record and Signature Disclosure:
Accepted: 9/30/2025 6:25:18 PM
ID: 7451eb1e-a69e-4677-9c38-a497397334b3

In Person Signer Events	Signature	Timestamp
Editor Delivery Events	Status	Timestamp
Agent Delivery Events	Status	Timestamp
Intermediary Delivery Events	Status	Timestamp
Certified Delivery Events	Status	Timestamp
Carbon Copy Events	Status	Timestamp

Adam Nemati anemati@mepce.com Security Level: Email, Account Authentication (None)	COPIED	Sent: 10/1/2025 11:14:30 AM
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Electronic Record and Signature Disclosure:
Not Offered via Docusign

Carbon Copy Events	Status	Timestamp
Spencer A. Jackson spencer.jackson@tdindustries.com Project Executive TDIndustries Security Level: Email, Account Authentication (None)	COPIED	Sent: 10/1/2025 11:14:31 AM
Electronic Record and Signature Disclosure: Not Offered via DocuSign		

Witness Events	Signature	Timestamp
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Notary Events	Signature	Timestamp
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Envelope Summary Events	Status	Timestamps
Envelope Sent	Hashed/Encrypted	9/30/2025 4:48:18 PM
Certified Delivered	Security Checked	9/30/2025 6:25:18 PM
Signing Complete	Security Checked	10/1/2025 11:14:27 AM
Completed	Security Checked	10/1/2025 11:14:31 AM

Payment Events	Status	Timestamps
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Electronic Record and Signature Disclosure
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ELECTRONIC RECORD AND SIGNATURE DISCLOSURE

From time to time, TDIndustries, Inc (we, us or Company) may be required by law to provide to you certain written notices or disclosures. Described below are the terms and conditions for providing to you such notices and disclosures electronically through the DocuSign system. Please read the information below carefully and thoroughly, and if you can access this information electronically to your satisfaction and agree to this Electronic Record and Signature Disclosure (ERSD), please confirm your agreement by selecting the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

Getting paper copies

At any time, you may request from us a paper copy of any record provided or made available electronically to you by us. You will have the ability to download and print documents we send to you through the DocuSign system during and immediately after the signing session and, if you elect to create a DocuSign account, you may access the documents for a limited period of time (usually 30 days) after such documents are first sent to you. After such time, if you wish for us to send you paper copies of any such documents from our office to you, you will be charged a \$0.00 per-page fee. You may request delivery of such paper copies from us by following the procedure described below.

Withdrawing your consent

If you decide to receive notices and disclosures from us electronically, you may at any time change your mind and tell us that thereafter you want to receive required notices and disclosures only in paper format. How you must inform us of your decision to receive future notices and disclosure in paper format and withdraw your consent to receive notices and disclosures electronically is described below.

Consequences of changing your mind

If you elect to receive required notices and disclosures only in paper format, it will slow the speed at which we can complete certain steps in transactions with you and delivering services to you because we will need first to send the required notices or disclosures to you in paper format, and then wait until we receive back from you your acknowledgment of your receipt of such paper notices or disclosures. Further, you will no longer be able to use the DocuSign system to receive required notices and consents electronically from us or to sign electronically documents from us.

All notices and disclosures will be sent to you electronically

Unless you tell us otherwise in accordance with the procedures described herein, we will provide electronically to you through the DocuSign system all required notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you during the course of our relationship with you. To reduce the chance of you inadvertently not receiving any notice or disclosure, we prefer to provide all of the required notices and disclosures to you by the same method and to the same address that you have given us. Thus, you can receive all the disclosures and notices electronically or in paper format through the paper mail delivery system. If you do not agree with this process, please let us know as described below. Please also see the paragraph immediately above that describes the consequences of your electing not to receive delivery of the notices and disclosures electronically from us.

How to contact TDIndustries, Inc:

You may contact us to let us know of your changes as to how we may contact you electronically, to request paper copies of certain information from us, and to withdraw your prior consent to receive notices and disclosures electronically as follows:

To contact us by email send messages to: valerie.thomas@tdindustries.com

To advise TDIndustries, Inc of your new email address

To let us know of a change in your email address where we should send notices and disclosures electronically to you, you must send an email message to us at valerie.thomas@tdindustries.com and in the body of such request you must state: your previous email address, your new email address. We do not require any other information from you to change your email address.

If you created a DocuSign account, you may update it with your new email address through your account preferences.

To request paper copies from TDIndustries, Inc

To request delivery from us of paper copies of the notices and disclosures previously provided by us to you electronically, you must send us an email to valerie.thomas@tdindustries.com and in the body of such request you must state your email address, full name, mailing address, and telephone number. We will bill you for any fees at that time, if any.

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